

PART I - THE EVOLUTION OF FEDERAL
PUBLIC HOUSING ACTIVITIES

CHAPTER I

THE BACKGROUND OF FEDERAL PUBLIC HOUSING PROGRAMS
SPECIAL EMPHASIS WILL BE PLACED ON THE PATTERN OF
FEDERALLY-INITIATED AND OPERATED PROGRAMS

World War I

The Federal government's initial entry into the field of housing was accomplished during the first world war. This activity, on the part of the Federal government, was brought about by the realization, in 1917, that workers in war industries needed adequate shelter if a full production schedule was to be maintained. Congress therefore, "...authorized the construction of housing, transportation and other facilities for workers engaged in arsenals and Navy yards,"¹ in May, 1918, and appropriated \$100,000,000 for that purpose. The United States Housing Corporation and the United States Shipping Board were authorized to build these facilities. Site plans included housing for 150,000 people.

The United States Housing Corporation was in operation for just 109 days before the war ended. During that time, work was started on 140 projects most of which were completed.

¹Charles Abrams, The Future of Housing (New York: Harper and Brothers, 1946), p. 297.

Some housing was temporary, but most of the buildings were of a permanent nature. Forty thousand people were housed under that program. However, by 1920, most of the projects were liquidated and the houses sold to private parties. The Government, in this venture, lost about one-third of the money appropriated for the undertaking.²

Depression Period

The passage of the National Industrial Recovery Act in June, 1933, marked a second effort by the Federal government to initiate and operate a housing program. This Act, primarily designed to provide employment, and "to encourage national industrial recovery," afforded the government an opportunity to experiment with several types of housing under different programs. A portion of Section 208, of Title II of the National Industrial Recovery Act states:

To provide for aiding the redistribution of the over-balance of population in industrial centers \$25,000,000 is hereby made available to the President, to be used by him...for making loans for and otherwise aiding in the purchase of subsistence homesteads.³

The Division of Subsistence Homesteads was subsequently organized in July, 1933, as a unit of the Department of the Interior. The purpose of the Division was to deal with the problems of stranded industrial groups, over-aged workers, the shorter work day and work week, cyclical unemployment, seasonal

2 Loc. cit.

3 U.S. Dept. of Interior, Div. of Sub. Homesteads, Bulletin No. 1. Nov. 15, 1953 (Washington, D.C.: 1933), p. 1.

unemployment, decentralization of industry, and stranded agricultural communities. The program of this agency consisted of establishing groups of homesteads near a place of work, e.g. small industry, heavy industry. Each home was to be on enough land⁴ to allow the family to raise food (or subsistence) to supplement the wages from the employment of its working members. Five major classes of projects were to be established: 1) workers' garden homesteads near small industrial centers; 2) workers' garden homesteads near large industrial centers (heavy industry); 3) projects for the rehabilitation of stranded industrial populations; 4) projects for the reorganization of disorganized rural communities; 5) the movement of population, largely farm families, from submarginal dry-farm lands to unoccupied farms on existing Federal Reclamation projects.⁵ Thirty-one homestead projects were built and managed as part of this program.

Section 202 of Title II of the National Industrial Recovery Act allowed the "construction under public regulation or control of low-cost housing and slum clearance projects."⁶ The Public Works Administration was established, in July, 1933, to manage among its large assignment of public works activity, this aspect of the "national recovery." The Public Works

4 Home to five acres, depending upon soil, size of family, type of agricultural operations contemplated, type of wage employment offered the homesteaders, etc.

5 U.S. Dept. of Interior, *op. cit.*, pp. 7-8.

6 Abrams, *op. cit.*, p. 251

Administration had the power to lend money, grant subsidies, buy land and construct projects. It used all of these powers. The policy of the Public Works Administration was to work through local agencies. At first, the agency made loans to limited dividend corporations which met certain requirements. This experience proved unsatisfactory. The Public Works Administration accepted only seven from more than five hundred applications. States were encouraged to pass enabling acts so that cities could establish housing authorities. However, a Housing Division was set up in the Public Works Administration, "to take the initiative in slum clearance and low-cost housing projects in cases where local agencies are unable or unwilling to act promptly."⁷ This division started construction on fifty-one projects. By the end of December, 1939, forty-nine projects (located in thirty-seven cities) were available for occupancy.

The Resettlement Administration was created by Executive Order No. 7027, April 30, 1935, under the Emergency Relief Appropriation Act of 1935. The aim of this program was to resettle destitute or low-income families from rural and urban areas to rural and urban communities which would be established, maintained and operated by the Resettlement Administration. The three "planned" communities were known as "Greenbelt" towns. The Resettlement Administration also

⁷ Ibid., p. 252.

managed the Subsistence Homesteads projects which had been transferred to its jurisdiction in August, 1935.

In September, 1937, both the Resettlement projects and the Subsistence Homesteads projects were transferred to the Farm Security Administration in the Department of Agriculture. Besides managing the foregoing projects, the Farm Security Administration undertook rural rehabilitation. This agency built and managed migrant camps and farm labor homes, and provided credit and technical aid for low-income farmers.

The foregoing experimental housing programs were accomplished through direct federal action. Projects were constructed and managed by a federal agency. The United States Housing Act of 1937 marked a change in this trend.

Discontent with the centralized administration of the Public Works Administration among other things, led to a fight for new legislation which was culminated by the passage of the United States Housing Act, P.L. 412, in 1937. The objectives of this Act were threefold: to provide decent housing for low-income families; to aid municipalities in eliminating slums; to relieve unemployment. A United States Housing Authority was created, under the jurisdiction of the Department of the Interior, to administer a long-range public housing program. This agency was to furnish financial aid, through loans and subsidies, Subsidies were to be in the form of annual contributions and capital grants. However, because of the marked inferiority of the capital grant subsidy, none has been made.⁸ and technical assistance, to local housing authorities,

⁸ Subsidies were to be in the form of annual contributions and capital grants. However, because of the marked inferiority of the capital grant subsidy, none has been made.

so that the local authorities could build and operate low-rent public housing projects. Instead of direct federal action, the local housing authorities were to be responsible for ascertaining the need for low-rent public housing, and for planning, constructing and operating the program in the individual communities of which they were a part.

Section 12 of the United States Housing Act of 1937 provided for:

- (a) ...the orderly disposal of any low-rent housing projects hereafter transferred to or acquired by the Authority through the sale or leasing of such projects...
- (b) ...as soon as practicable the Authority shall sell its Federal projects or divest itself through leases...⁹

The projects built by the Public Works Administration were transferred to the United States Housing Authority which, in turn, leased them to local housing authorities, to be used as part of the low-rent program.

The United States Housing Act was unique not only for the change of policy reducing direct federal action in public housing to financial and technical assistance of local governmental bodies. The Act contained the first declaration of a national housing policy.

It is hereby declared to be the policy of the United States to promote the general welfare of the Nation by employing its funds and credit...to remedy the unsafe and insanitary housing conditions and the acute shortage of decent, safe and sanitary dwellings for

⁹ U.S. Statutes at Large, v. 50 (Washington), U.S. Congress, p. 894.

families of low income...that is injurious to health, safety, and morals of the citizens of the Nation.¹⁰

The previous policy of the Public Works Administration that encouraged the states to pass enabling legislation to allow local communities to establish local housing authorities helped the new program to get under way immediately. Twenty-nine states had enacted enabling legislation and forty-six housing authorities had been established by the time the 1937 Housing Act was passed.

Under the Housing Act of 1937 an enabling act by the state legislature is necessary to permit the formation of separate local housing authorities within the state. When the need for low-rent housing is determined by a local group, the housing authority may be created by a resolution of the local governing body.

Local housing authorities are autonomous agencies. As corporate bodies, they are theoretically free from governmental and political interference in the operation and management of the housing projects. The members are appointed by the head of the local governing body (usually the mayor). The local governing body must approve the plans of the local housing authority at several points. Once approval of the dwelling site, etc. has been gained, the authority decides, within the general framework of the statutes, upon policies to be followed in the operation of the projects, and states them in a Master Management Resolution. The Master Management Resolution is submitted to the Federal agency for approval, along with the

¹⁰ Ibid., p. 888.

site plans, construction plans, a schedule of rents, a preliminary budget for each project (in order to obtain an advance of funds), a detailed operating budget for each project (when the project is in operation), and a form of dwelling lease. The Federal agency reviews this material to see that it conforms with the Statutes. The agency also prepares "standards, guides and procedures" to aid the local housing authorities with the development and operation of their programs. The housing authority selects personnel, makes decisions as to the sites of the projects, the income levels (within the limits set by the Federal government) of the people to be housed, the rentals to be charged, certain aspects of tenant selection, e.g. occupancy preferences may use the criteria of length of residence in the city or county, place of employment, or race (in the case of a segregated program), besides the general criteria contained in the Statutes.

War Housing

The start of war housing is counted from June 28, 1940, when Congress passed the United States Housing Act Defense Amendment, P.L. 671. With this amendment began the third period of direct federal action in public housing. Section 201 of Title II of the Amendments authorized the War and Navy Departments and the United States Housing Authority to "cooperate in making necessary housing available for persons engaged in national defense activities..."¹¹ The United States Housing Authority

¹¹U.S. *Statutes at Large*, v. 54, pp. 681-2.

was authorized to provide funds and technical assistance for those projects undertaken by the War and Navy departments. Section 203 of Title II of the Amendments states:¹²

"In any localities where the President determines that there is an acute shortage of housing which impedes the national defense program...the Authority¹³ may undertake the development and administration¹⁴ of projects...or the Authority may extend financial assistance to public housing agencies for the development and administration of such projects."¹⁵

All funds still available under the United States Housing Authority program were used for war housing. The public housing projects which had been started by authority of the low-rent program¹⁶ were completed as war housing in those areas where defense work and workers were accumulating.¹⁷ This program added 62,000 dwelling units to the supply of war housing.

To give impetus to the war housing program, Congress appropriated \$100,000,000 to the War and Navy departments on September 9, 1940 (P.L. 781), "...for the acquisition of necessary land and the construction of housing units...at locations on or near military or Naval establishments, now in existence or to be built, or near privately owned industrial plants engaged in military or naval

12 Loc. cit.

13 "Authority" stands for United States Housing Authority.

14 Italics are the author's.

15 Statutes at Large, v. 54, pp. 681-2.

16 334 low-rent housing projects (105,600 dwelling units) had been built or were under construction under this program.

17 These projects were to revert back to low-rent use after the emergency.

activities which...shall be construed to include activities of the Maritime Commission.¹⁸

On October 14, 1940, Congress approved the Lanham Act (P.L. 849).

To provide housing for persons engaged in national defense activities and their families and living quarters for single persons engaged in those areas or localities in which the President shall find that an acute shortage of housing exists or impends which would impede national-defense activities and that such housing would not be provided for by private capital when needed, the Federal Works Administration is authorized:

- (a) To acquire prior to the approval of title by the Attorney General...improved or unimproved lands or interests in lands by purchase,donation, exchange, lease...
- (b) By contract or otherwise...to make surveys and investigations, plan,design, construct, remodel, extend, repair or demolish structures, buildings, improvements and community facilities on lands or interests in lands acquired under provisions of subsection (a)...provide proper approaches thereto, utilities and transportation facilities...Provided...that where the Administrator shall consider that there is no reasonable prospect of disposing of such housing to meet a need extending beyond the emergency, he shall construct temporary units.¹⁹

To acquire, construct and operate public war housing, \$150,000,000 was appropriated to the Federal Works Agency.

Lack of coordination among the many agencies working under these war housing acts and producing the same goods (war housing) resulted in an atmosphere of confusion. The largest appropriation (\$150,000,000) for defense housing was authorized by the Lanham Act. Ten million dollars of this amount was used indirectly for the Defense Homes Corporation,²⁰ which aided

¹⁸ Statutes at Large, v. 54, p. 683.

¹⁹ Ibid., pp. 1125-1126.

²⁰ The funds for this agency were borrowed from the Lanham Act appropriation and replaced by funds from the President's emergency fund.

private industry. The rest of the appropriation was to be distributed by the Federal Works Agency to government agencies that were engaged in building defense housing, or to local housing authorities.²¹ The Federal Works Agency utilized the Public Buildings Administration, the Tennessee Valley Authority and the Farm Security Administration. In addition, the War and Navy Departments and the Maritime Commission were carrying out separate housing programs (aided too, by funds from the Federal Works Agency).²²

Private enterprise had been geared to the war effort, too. Communities were encouraged to absorb the defense workers by using all available housing and by converting existing housing into additional dwelling units. The Federal Housing Administration and the Home Owners Loan Corporation executed the latter tasks; the Homes Registration Offices and War Housing Centers performed the former. Private builders were encouraged to construct housing in areas where communities were expected to absorb the defense workers permanently. The builders were aided by the Defense Homes Corporation, established in October, 1940.

It was for the purpose of "...using to the fullest

21 In this case, the local housing authorities built and operated war housing projects as agents of the Federal government, i.e. these projects were operated by the local housing authorities for the Federal government.

22 The original program, P.L. 781 (cf. p. 8) authorized funds for the War and Navy departments; however, Lanham Act funds were to be used for the same purpose, therefore the FWA contributed money to these departments from the Lanham Act appropriation.

extent all the available facilities of each of the Federal housing agencies under their respective legislative and executive authority,"²³ and to determine whether or not a housing need could be met by private enterprise, that a Division of Defense Housing Coordination was established by Executive Order of the President on January 11, 1941. The Defense Housing Coordinator, however, could only apprise housing agencies of the local situation in areas where they were intending to build, e.g. whether housing programs of public or private agencies overlapped, and make recommendations to them. He had no control over their actions.

On February 24, 1942, the President, under authority of the First War Powers Act, issued Executive Order 9070, which established the National Housing Agency. The National Housing Agency had under its jurisdiction just three agencies: the Federal Housing Administration, the Federal Home Loan Bank Administration, and the Federal Public Housing Authority. These agencies represented a consolidation of the functions of the Federal non-farm housing program.

PLAN OF REORGANIZATION²⁴

National Housing Agency
(Administrator)

Included housing functions of:
Federal Loan Administrator
Federal Works Administrator
Coordinator of Defense Housing

²³ NAHO (National Association of Housing Officials), Defense Housing Digest (Chicago: 1940), p. 87.

²⁴ Abrams, op. cit., p. 414.

<u>Federal Housing Admin.</u>	<u>Federal Home Loan Bank Admin.</u>	<u>Federal Public Housing Authority</u>
Included	Included	Included
functions of:	functions of:	functions of:
• Fed. Housing Admin.	Fed. Home Loan Bank Bd.	U.S. Housing Auth. Defense Homes Corp.
	Fed. Home Loan Bank Sys.	Nonfarm Public Housing from Farm Security Admin.
	Fed. Savings & Loan Insurance Corp.	Defense Public Housing (except on Army and Navy Reservations)
	Home Owners' Loan Corp.	
	U.S. Housing Corp. (for liquidation)	

Note: On June 30, 1944, the war housing program of the Maritime Commission, consisting of dormitories and dwelling units, was transferred to the FPHA.

The policies of the National Housing Agency were centered in the Office of the Administrator. Regional representatives of the Office of the Administrator determined the housing need in their areas, on the basis of employment and labor migration statistics from the War Manpower Commission, war plants and unions, and war housing was programmed from these estimates. In 1942, the housing shortage was at its peak. War Housing Centers were opened to try to find homes for the immigrant workers. Priorities for building materials were issued only if the construction was in accordance with the war housing programmed by the National Housing Agency.

The Federal Public Housing Authority added 722,000 dwelling units to the supply of war housing. Part of this amount was constructed by local housing authorities for the Government²⁵ and the rest of the construction was supervised

25 Cf. p. 11, fn. 21.

by the Federal Public Housing Authority. "Because all except 172,000 of these homes were temporary or demountable, they were also of inferior construction, were planned as simply as possible and most could not be used as permanent dwellings."²⁶

After the "emergency," the Federal government was to dispose of its war housing. Permanent housing was either to be transferred to local housing authorities or sold to individual owners. Temporary housing was to be disposed of by sale or demolition. Some 220,000 temporary dwelling units are still standing and "remain under the supervision of the Public Housing Administration."²⁷

Post War Housing

In the fall of 1945, the low-rent housing program exhibited the following picture:²⁸

<u>Active P.L. 412</u>	118,000
Low-rent	106,000
War use	12,000

<u>Active P.L. 671</u> ²⁹	53,000
all war use	

<u>Deferred P.L. 412</u> ³⁰	23,000
all low rent	

The migration of war workers, the lack of private

²⁶ Abrams, op. cit., p. 306.

²⁷ American Builder, "Housing Activities of the Fed. Govt." (Sept. 1951), p. 5-18.

²⁸ U.S. Congress, Senate, Committee on Banking and Currency, Graphic Material in Support of Statement by Philip M. Klutznick, Commissioner, Federal Public Housing Authority, 79th Cong., 1st Sess. (Washington, GPO, 1946), S. 1592..

²⁹ These projects were built with funds originally appropriated for low-rent housing under the Act of 1937, but were used for war housing under the USHA Defense Amd., cf. p. 9.

³⁰ These projects were planned under the 1937 Housing program but were deferred until the end of the war.

housing construction during the war, plus a shortage of building materials hindered postwar housing construction.

During the year following V-J Day (August 14, 1945), an estimated 18,700,000 civilians changed their county of residence, and one-half of that number changed state residence. The principal reason was to find or take jobs (close to six million civilians). An additional 1,900,000 moved because of housing situations. The rate of migration was highest among veterans of the Second World War.³¹

The resultant demand for housing led to the addition of Title V (P.L. 87) to the Lanham Act, in December, 1945.

Title V - Housing for Distressed Families of
Servicemen and Veterans with Families

In those areas or localities where the Administrator shall find that an acute housing shortage exists or impends and that, because of war restrictions, permanent housing cannot be provided in sufficient quantities when needed...the Administrator is authorized...to provide housing for distressed families of servicemen and for veterans and their families who are affected by evictions or other unusual hardships (where other needs cannot be met through utilization of the existing housing supply, including housing under the jurisdiction of the Administrator); provided that any housing constructed under the provisions of this Title V shall be undertaken only where the need cannot be met by moving existing housing and shall be of temporary character...³²

Approximately 260,000 dwelling units were provided under this program, "through the moving and conversion of war structures...by the Federal Government in cooperation with local communities and educational institutions where veterans

31 Social Work Yearbook, v. 10 (Vermont: E. L. Hildreth, 1949), p. 325.

32 U.S. Housing and Home Finance Agency, Office of the Administrator, Basic Statutes, Office of the Administrator Manual Series, v. 1 (Washington, D.C.: Government Printing Office, 1952).

were resuming or beginning their high education."³³

The National Housing Agency was a temporary organization created under a wartime emergency. Therefore, on July 27, 1947, a permanent national housing agency was formed under the President's Reorganization Plan No. 3. The new Housing and Home Finance Agency was empowered to supervise and coordinate the activities of the Home Loan Bank Board, the Federal Housing Administration and the Public Housing Administration. These three agencies retained the functions of their wartime predecessors.

The Housing Act of 1949 was an expansion of the housing act passed in 1937. Congress declared a national housing policy which, when compared with the policy stated in the 1937 Act, shows the development and growth gathered in twelve years of continuous housing experience.

"The Congress hereby declares that the general welfare and security of the Nation and the health and living standards of its people require housing production and related community development sufficient to remedy the serious housing shortage, the elimination of sub-standard and other inadequate housing through the clearance of slum and blighted areas and the realization as soon as feasible of the goal of a decent home and a suitable living environment for every American family..."³⁴

33 U.S. Housing and Home Finance Agency, Office of the Administrator, A Summary of the Evolution of Housing Activities in the Federal Government (Washington, D.C.: GPO, 1950), p. 11.

34 Loc. cit.

Similarly, the 1949 Act indicates the trend away from direct federal action.³⁵ The Act establishes as a basic policy, "...maximum encouragement and assistance to private enterprise in serving the major part of housing needs, and the provision of Federal assistance, primarily through local agencies, in serving those needs that cannot be met by reliance on private enterprise."³⁶

The 1949 Act permitted the construction of 810,000 low-rent units over a six-year period (135,000 per year). These low-rent units were to be constructed and operated by local housing authorities, with the Federal government lending financial assistance in the form of annual contributions. Power was given to the President to increase or decrease this amount of low-rent housing, if the economic conditions warranted it.

Private housing construction soared during 1949, but by 1950 it was apparent that the housing needs of "moderate income" families were not being adequately met. Consequently, a housing act was passed in April, 1950, the main objective being to expand governmental aids to private housing construction. This Act also contained provisions for the disposal of

35 Other indications of this trend are shown by the fact that on June 30, 1948, the Defense Homes Corporation sold the last home under that agency's operation, and on May 19, 1949, Congress approved P.L. 65 which permits the FHA Commissioner to sell the three Greenbelt towns.

36 A Summary of the Evolution of Housing Activities, p. 14.

all war and veterans public housing. Title VI of the Act specified procedures whereby war and veterans housing projects could be transferred to municipalities and local groups if they made their request by December 31, 1950. The temporary housing that remained under the jurisdiction of the Housing and Home Finance Agency was to be vacated by July 1, 1952 and disposed of as soon as practicable after that.

The outbreak of the Korean War in June, 1950 changed the housing picture. The President limited construction starts for the last six months of that year to "conserve critical defense materials." The beginning of 1951 saw the recurrence of a defense economy. New construction starts were limited to a smaller amount than that of the previous year, with preference accorded to projects in defense areas. Again, it was necessary to provide for immigrant defense workers and military personnel. Again, the Federal government stepped in, to take direct action in this new emergency. The date for vacating and disposing of the war and veterans housing was extended one year.³⁷ Congress passed the Defense Housing and Community Facilities and Services Act in September, 1951. This Act identifies critical defense housing areas through the use of certain specific criteria,³⁸ and authorizes special Federal assistance to these areas. The assistance is intended

37 On April 8, 1952, a Presidential Order extended the life of war and veterans housing one more year, so that the projects will not be demolished until after July 1, 1954.

38 The criteria are as follows: (1) a new defense plant or installation has been or is to be provided, or an existing one reactivated or its operating substantially expanded; and (2) substantial immigration of defense workers or military personnel is required to carry out activities at such defense plant or installation.

primarily to aid private industry and local communities. However, provision is also included for Federally-constructed permanent and temporary defense housing, if required to meet defense needs.³⁹ The Public Housing Administration is responsible for providing and managing the housing which is supplied directly by the Government under this Act.⁴⁰ This agency is also responsible for the management and disposition of the Federally-owned World War II and veterans housing, the Subsistence Homesteads and the "Greenbelt" towns.

39 U.S. Defense Production Administration, Advisory Committee on Defense Areas, Critical Defense Housing Areas (Washington, D.C., n.d.).

40 This housing consists of temporary or mobile units.

CHAPTER II
NON-SEGREGATION IN FEDERALLY-INITIATED
AND OPERATED HOUSING

Until wartime, the racial aspects of housing took a secondary role among national issues. The first major public housing program was a result of the depression. The program was conceived as a means of supplying work and creating employment, and eliminating slum housing. These factors were primary concerns of the depression program and of the 1937 program. Other matters, such as that of segregation were not mentioned.

The segregation of racial groups was apparently assumed and followed at the time the Government first ventured into the field of housing. As far as can be ascertained, the Subsistence Homesteads, "Greenbelt" towns and the PWA projects were segregated. These three programs included projects for racial minority groups, but they were either separate projects from those of the white population or were segregated by area, within a given project.¹

The question of segregation arose on a local level with

1 Of the 19 PWA projects completed by December, 1938, 15 were occupied by both Negro and white tenants. It is not known to the author when these 15 projects were completed, i.e. whether under PWA administration or under the USHA-LHA program. Catherine Bauer states the PWA projects were segregated, with the possible exception of New York City. Therefore, if the "mixed" projects were under PWA supervision, the author assumes racial groups were segregated by area.

the passage of the Housing Act of 1937, and subsequent creation of many additional local housing authorities. In keeping with the trend towards local autonomy, the Act allowed the local housing authorities to assume responsibility for the policies and mechanisms of the program at a local level. The Act established a general framework of policy within which the local bodies could operate.²

The purpose of the 1937 Act was stated as follows:³

To provide financial assistance...for elimination of unsafe and insanitary housing conditions; for the eradication of slums; for provision of decent, safe and sanitary dwellings for families of low income....

The definition of "families of low income" as set forth in the Act means "families who are in the lowest income group and who cannot afford to pay enough to cause private enterprise in their locality or metropolitan area to build an adequate supply of decent, safe and sanitary dwellings for their use."⁴

The United States Housing Authority was the agency created to carry out the general policy stated in the Act. This agency, in the Manual on Policy and Procedure, stated, "The local housing authority decides whether local conditions indicate that there should be any distribution along racial

2 cf. p. 6 for statement of policy.

3 U.S. Congress, Statutes at Large, Public Laws, 75th Congress, First Session, v. 50 (Washington, D.C.: Government Printing Office, 1937), p. 888.

4 Loc. cit.

lines."⁵ At the same time, the United States Housing Authority "insisted that the distribution be equitable in regard to the needs of different groups."⁶ The local housing authorities, therefore, settled the issue of segregation in various ways, and throughout the country today, there is a varied pattern of racial occupancy in cities and counties with local housing authorities.⁷

The war emergency brought the Federal government directly into the housing field. Circumstances occurring at this time also stirred up the issue of segregation. One of the chief causes was the migration of people to defense areas. The National Housing Agency estimated at least 9,000,000 had to be housed.⁸ Racial minority groups were among this number.⁹ However, housing for the latter was not constructed at a rate commensurate with their employment in defense industries.

"Although housing was programmed to meet the needs of minority groups, programs are not houses, and regional representatives of the National Housing Agency and Federal Public

5 United States Housing Authority, Bulletin No. 18, Manual on Policy and Procedure, February 15, 1939 (Washington, D.C., 1939).

6 Catherine Bauer.

7 Projects may be completely segregated, segregated by project area, segregated by buildings, partially integrated or completely integrated.

8 U.S. National Housing Agency, War Housing in the United States (Washington, D.C.: Government Printing Office, 1945), p. 6.

9 The large-scale movement of Negroes to the large cities and to the North began in 1940.

Housing Authority encountered more or less local opposition the moment they attempted to get the programs into construction."¹⁰

The laws which have been responsible for the formation of local housing authorities and for the entrance of the Federal government into direct housing operations and the policies by which these agencies abide, stated:

1. who should be housed - The Housing Act of 1937 provided housing for "families of low income."¹¹ The war housing acts¹² provided housing for persons engaged in national defense activities, and after the war amendments were added to the acts to provide housing for veterans.
2. in what proportion minority groups should be housed -

USHA of 1937, as amended July 25, 1942, Title III¹³

(c) in the selection of tenants...(1) in initially selecting families for admission to dwellings...the public housing agency shall give preference to families having the most urgent housing needs....

PHA Bulletin, January, 1950

...the PHA will require that projects be made available relative to the need of the respective racial groups.

...the PHA will require that the proportion of tenants of the minority race be at least equal to their proportion among the families eligible for low-rent public housing.

¹⁰ Ibid., p. 31.

¹¹ cf. p. 6.

¹² cf. pp. 8, 9.

¹³ This is an indirect reference to the proportion in which minority groups should be housed. However, contrast the wording of Title III section of the act, with the policy statement made six months later, that follows it.

Form PHA-2090, August, 1950

...equitable provision will be made for low income families of all races in relation to their respective housing needs.

Low Rent Housing Manual 102.1 2-22-51 - Racial Policy

1. Programs for the development of low-rent housing in order to be eligible for PHA assistance, must reflect equitable provision for eligible families of all races determined on the approximate volume and urgency of their respective needs for such housing.

3. there should be no discrimination -

Lanham Act, as amended June 28, 1941, Section 203:

(4) Public works shall be provided on the basis of need and a determining need; no discrimination shall be made on account of race, creed or color.

Low Rent Housing Manual 102.2 6-29-51

1. No Development Program shall be approved unless the local authority agrees that, whenever an analysis of survey data shows a need in the minority group in the locality, dwelling units will be constructed for such minority group families at the same market ratio which is being used for the majority group families in the locality.

2. In every case where survey findings fail to show a sufficient effective market for families of minority groups, the Field Office Racial Relations Officer shall make a field investigation. He shall certify as to:

- a) the lack of an eligible minority group market; or
- b) the existence of an eligible minority group market and the estimated number of eligible applicants.

3. If no eligible market of minority families is found at the time of the Racial Relations Officer's investigation but one subsequently develops, the PHA and the local authority must:

- a) if the program is at a stage where this is practical, revise the Development Program to provide housing for eligible minority families; or
- b) if the Development Program has progressed beyond the stage where revision is practical, include in any subsequent program for this locality equitable provisions for eligible racial minority families.

The laws and policies did not state in what manner minority groups should be housed, i.e. whether they should be segregated or be given housing indiscriminately. This was left to the discretion of the local agency operating the program.

In the case where the Federal government was the agency, the matter was left to the discretion of the Regional Office of the Public Housing Authority, or to the discretion of the manager of each project in the region. At both levels of administration, local pressures and influences were brought to bear, as is evidenced by the table below.

The following figures show the racial occupancy patterns in 72 of the 83 directly-operated projects (Lanham and USHA) throughout the country:

<u>Completely Segregated</u>	<u>Segregated by Buildings</u>	<u>Segregated by Project Area</u>	<u>Partially Integrated</u>	<u>Completely Integrated</u>
30	14	8	1	19

Add to this table the number of projects operated by local housing authorities, and a complete picture of segregation in public housing would then be available.

CHAPTER III

PUBLIC HOUSING IN THE BAY AREA

In California, housing authorities have been created by law in each city and county, to be activated only by a resolution of the city or county governing body.¹ Three cities in the Bay Area (Richmond, Oakland and San Francisco) and Contra Costa County had taken advantage of this legislation under the 1937 program. When the war housing acts² were passed by Congress, local governments still had the opportunity to establish housing authorities, to manage anticipated war housing for the Federal government.³ Two other cities (Alameda and Vallejo) and a county (Marin) noted at this time, to create housing authorities. In those cities or counties where the governing bodies had not chosen to establish local housing authorities but where housing was needed for war workers in larger amounts than private builders could fill, the Federal government was obliged to construct and operate war housing projects. These latter projects are called "directly-

1 Stanley Scott, "Housing Legislation in Selected States," University of California, Bureau of Public Administration (Berkeley, 1949).

2 cf. pp. 8, 9.

3 In the case of war housing, the local housing authorities had the same amount of autonomy in operating the projects as with the low-rent projects but those agencies did not own the war projects; the Federal government did. cf. fn. 21.

managed" projects. Codornices Village, situated in Berkeley and Albany, is an example of one.

The directly-managed projects are run according to policies and rules which emanate from Washington, D.C. These rules are the Federal government's interpretation of the housing laws. The Regional Office of the Public Housing Administration maintains a liaison contact between the central office in Washington and the individual project manager, through Management Supervisors. If the project manager has any question about interpreting a directive from the central office or initiating a local policy within the limits allowed him, the Management Supervisor's function is to interpret the policy in the light of local conditions. The project manager submits a detailed operating budget similar to that issued by the local housing authority. Detailed reports are submitted by the project manager on every phase of project management.

The actions of the project manager of the federally-operated project are as closely scrutinized by the Federal agency as those of the project manager in the local program are by the local housing authority.

The Need for War Housing in the Bay Area

Three cities in the Bay Area had instituted low-rent housing programs when the legislation was passed, in June, 1940, authorizing all low-rent projects to be used for war housing, and all remaining funds available for low-rent housing to be used to construct war housing. San Francisco had five projects, with a total of 1,741 dwelling units; Oakland had three projects,

with a total of 922 dwelling units; Richmond had two projects, with a total of 200 dwelling units.⁴

The population of the Bay Area in 1940 was:⁵

San Francisco Bay Area	1,461,804
City of Alameda	32,256
Albany	11,433
Berkeley	85,547
Oakland	302,163
Richmond	23,642
San Francisco	634,536
Vallejo	20,072
County of Marin	44,555

War housing was a direct result of the expansion of war industry. The San Francisco Bay Area became the major shipbuilding center on the West Coast, with contracts totaling \$2,667,112,000.⁶ Other war industries expanded and developed so that by 1944, this area had been allocated more than \$4,000,000,000 in war supply contracts.⁷ The companies, badly needing labor, recruited workers from all parts of the country. The War Manpower Commission did not allow defense industries from one "critical defense area" to recruit from another "critical defense area." Therefore, the industry sent its representatives to rural areas and to small urban areas in the nation where war work was not being done on a large scale.

4 U.S. Housing and Home Finance Agency, Public Housing Administration, Statistics Branch, Housing Operations Directory (Washington, D.C., January, 1952), p. 120.

5 California Population Commission, Current Changes in the California Population Status (September, 1948).

6 Ibid., Rept. #19, 20.

7 ⁷California State Chamber of Commerce, Research Dept., Economic Survey Report #19, 20, series 1944-1945.

The following table indicates the number of immigrants to the Bay Area, and in what quantity they came, from other areas in the country:⁸

In-Migrant Residents as of April, 1944-By Place of Residence in 1940

Total in-migrants	514,315
From elsewhere in state	160,825
From Northern California	103,845
From Southern California	56,980
From Other States	337,785
New England	5,810
Middle Atlantic	22,785
East North Central	35,525
West North Central	74,620
South Atlantic	11,935
East South Central	9,870
West South Central	97,790
Mountain	54,810
Pacific (Oregon & Washington)	24,640
From Foreign Countries	16,205

As indicated by the above table, the largest group of immigrants, from states other than California, came from the West South Central States of Texas, Oklahoma and Louisiana. The second largest group came from the West North Central States of Minnesota, Iowa, Missouri, North Dakota, South Dakota, Nebraska and Kansas.

Negroes were among the immigrant workers recruited to the Bay Area. President Roosevelt issued the following Executive Order:⁹

8 Ibid., Rept. #24.

9 Executive Order 9346.

"...it is the policy of the United States to encourage full participation in the war effort by all persons in the United States regardless of race, creed, color or national origin."

The industries in this region, driven by necessity, were glad to carry out that Order. Mr. Friedman, of Kaiser Industries, Inc., states, "The policy of Kaiser Shipyards was just to get willing hands." The Kaiser Shipyards employed 100,000 people. Evidence of this statement is borne out by C. W. Record, who states in a recent article: "...during the war period, both industry and government took drastic measures to induce Negroes to migrate from the South to the West Coast." Private firms employed scores of labor recruiters to comb the cities and rural areas of the South for prospective Negro workers. All the traditional appeals on the basis of climate, health and opportunity, in addition to patriotism, were invoked.¹⁰

A study by the Commonwealth Club of California points out the fact that Negro migration during World War II has been mainly from the South, whereas Negro migration through the years has been an East to West trend.

"Sources of the California Negro population (from 1940-44, ed.)...have been now predominantly South and Southwestern than those of the general native population.... More than 60% of the Negroes were born in southern states. Texas and Louisiana were the leading states of birth, jointly accounting for nearly 1/3 of the total. The sources of Negro migration (over the years-ed.)...have, however, followed the same East-West shift as has the general population."¹¹

10 Cy W. Record, "The Negro-White Issue in California," Labor and Nation (May-June, 1948), pp. 25-27.

11 Commonwealth Club of California, Population of California, Research Service (San Francisco, 1946), p. 93.

The following table indicates the increase of the Negro population, from 1940-1944, in the Bay Area.

Increase in the Negro Population of Certain California Cities¹²

City	Number of Negroes in 1940 Census	Number of Negroes Counted as of Date Given	
Alameda	249	5/17/44	4,082
Berkeley	3,395	4/12/44	6,129
Oakland	8,462	4/44	22,945
Richmond	270	9/14/43	5,673
San Francisco	4,846	4/44	37,395
Vallejo	438	4/19/44	4,347
San Francisco Bay Area	19,759	4/1/44	64,860

The Negro immigrants to the Bay Area made up 9% of the total immigrant population (as of 1944) to that region. Below is shown the amount of increase in the total population as obtained by special census in 1943 and 1944.¹³

City	Population as of 1940 Census	Recounted of Date Shown	Population as Increase	Increase in Negro Pop.	
Alameda	36,256	5/17/44	68,146	31,890	3,833
Albany	11,493	6/19/44	14,873	3,380	...
Berkeley	85,547	4/12/44	100,024	14,477	12,734
Oakland	302,163	4/44	345,345	43,182	13,483
Richmond	26,624	9/14/43	93,738	67,113	12,549
San Francisco	634,536	4/44	700,735	66,199	12,549
Vallejo	20,072	4/19/44	42,941	22,869	3,909
Marin County	44,555	4/44	67,445	22,785	--
San Francisco Bay Area	1,319,115	4/44	1,840,545	514,815	44,921

¹² California Population Commission, Current Changes in California Population Status, op. cit., p. 2;

¹³ Ibid., p. 4.

The overall increase in civilian population from 1940 to 1944 was approximately 450,000 or 25%. The overall increase from 1940 to 1950 (the population in 1950 being 2,214,249), was approximately 750,000 or 51%.

The increase in the population of the Bay Area clearly justified an increase in housing. The National Housing Agency was responsible for programming war housing. Regional representatives of the Office of the Administrator determined the need on the basis of estimates of employment and migration figures from the War Manpower Commission, the war plants, and the unions. From April, 1940 to November, 1943, 100,000 dwelling units were completed and more than 50,000 were either under construction or had been programmed for the San Francisco region.

Codornices Village is one of the projects that had been programmed by November, 1943. It is the only federally-managed project in the Bay Area. The history of Codornices Village, the reasons why a directly-managed project was established in an area which, before and during the war, set up only local housing authorities, is interesting. Interesting too is the study of the community reaction to this project throughout the years. Most important, however, and definitely most interesting is the history of race relations at Codornices Village. This project was unique for the way in which the management set about solving the problem of incorporating racial minorities into its environs after a reverse pattern had already been set. This problem is bothering the whole Bay Area today. The racial occupancy patterns which exist in public housing projects are bound to influence community private housing patterns.¹⁴ This is especially true at the

¹⁴ This has happened in San Francisco, Los Angeles, and the Northeastern states, where the trend towards non-segregation in public housing has resulted in local ordinances against segregation in both public housing and private redevelopment housing.

present time, when many of the families in war and veterans public housing are living in these projects because of a housing shortage, and constitute a ready market for private housing. Therefore, it is important to look at Codornices Village, and to study the precedent it has set in the field of race relations, as an aid to future solutions in public and private housing.

CHAPTER IV

THE DEVELOPMENT OF CODORNICES VILLAGE

In choosing a site upon which to construct public housing units in the East Bay area, the authorities had to bear in mind the following facts:

- (a) The number of immigrants estimated to arrive in the area.

These estimates were based upon the need for labor, as reported by specific war plants in the area; the availability of labor (outside the area) for recruitment, as reported by the war plants and the War Manpower Commission; and the amount of labor available in the area, as reported by the labor unions.

- (b) The area to be served by the housing. The housing units were to be located as close as possible to the place of work.

- (c) Certain areas were completely full and their facilities taxed to the utmost. Richmond was "bursting" with the addition of over 15,000 dwelling units. Oakland was similarly filled, as were the urban areas of Contra Costa County.

- (d) The request of the Office of Defense Transportation that they "exhaust all existing transportation facilities before they locate in areas which will either strain existing facilities or require expansion...in the interest of saving critical materials."¹

¹ Letter from Langdon Post, Director Region X, FPHA, to the Berkeley City Council, August, 1943.

Codornices Village was originally built to serve the shipyards and industries of Richmond. The site selected for the project was a piece of land, approximately 120 acres in size, crossed by railroad tracks leading to Richmond. The property was located in Berkeley and Albany. The land in Berkeley had been zoned for industrial use and was owned by six individuals, while the University of California owned the land in Albany and had intended using this ground for agricultural purposes. This property was not in use at the time the Government contemplated employing it for a public housing project.

In an earlier chapter, it was pointed out that a part of the Lanham Act stated, "...where the Administrator shall consider that there is no reasonable prospect of disposing of such housing to meet a need extending beyond the emergency, he shall construct temporary units...."² Where there was no need for public housing (other than for the wartime population), or where it was expected that war workers would not be absorbed into the permanent population of an area, temporary housing was constructed.

The City Councils of both Berkeley and Albany objected to the proposed housing project. Two of the grounds upon which their objections were based were: (1) they did not need public housing, and (2) the project would be located, at least in Berkeley, on the only large piece of land available to industry. In view of these facts, the Government merely leased the property from the owners, paid rent for the land, and made payments in lieu of taxes (on the value of the improvements to the property) to the city and county governments.

² cf. p. 10.

Early Development

Codornices Village was constructed in the winter of 1943-1944, amid many protests from the local governmental bodies. Before the project was completed, the Federal Public Housing Authority had sent a representative, in the person of John Melville, to Berkeley and Albany "to try and establish good public relations."³ It was Melville's responsibility to persuade the cities to accept the housing project and its occupants, and to cooperate in establishing and maintaining health and school facilities.⁴

Labor estimates changed as Codornices was nearing completion. On March 14, 1944, the National Housing Agency amended the occupancy program of Codornices Village, with the result that of the 1,896 units in the project which had been planned for Richmond war workers, 1,600 were reserved for civilian employees of the Mare Island Navy Yard. This reservation was also amended as labor and migration estimates fluctuated. The Albany Naval Landing Force Equipment Depot reserved 400 units from the amount allotted to Mare Island, and industries in

3 Langdon Post.

4 Ibid.

West Berkeley and Emeryville⁵ were allowed 190 units of the Mare Island reservation. Codornices Village was constructed in sections. When one group of buildings was ready, the project office would notify the war agency concerned, which would then refer its employees for housing. The dwelling units were filled as soon as they were completed.

Codornices officially opened in April, 1944. By the end of June of that year, only 512 units had been completed. Six months were needed to finish the whole project. Of the 1,896 dwelling units in the Village, 1,056 are located in Berkeley and 840 in Albany.⁶ The apartments range, in size, from zero bedroom to 3 bedroom units. The dwellings are contained in 237 two-story apartment buildings. The buildings are stucco on the exteriors; the roofs are made of asphalted paper and felt. Inside the building, the walls are made of sheetrock. While the second-story floors are made of hardwood, the ground floors are concrete slabs. Each apartment contains an individual space-heater, hot water heater, an ice-box, and is furnished. (Tenants may use their own furniture, if they wish.) Beside each building is a drying yard for clothes. On the grounds are a community building, a child care center, an administration building, maintenance "sheds," a

5 Among these companies were: Industrial Minerals and Chemical Co., Berkeley; Key Systems; Gardner Electric Mfg. Co., Emeryville; California Packing Co., Emeryville; Bethlehem-Fairfield Fabrication Co., Richmond; Reliance Steel Products Co., Oakland.

6 During the war, eight apartments were used for offices for two doctors, a police office, the maintenance superintendent's night headquarters, and for storage. At present, the maintenance "sheds" are used for storage, the police office has been eliminated, and there is only one doctor living in the Village.

community playfield, two children's playgrounds and two combined basketball and tennis courts,

Attitude of the Communities

Berkeley is a university town. A city with a pre-war population of 85,547, it was unusual in many respects for a town of that size. Aside from the campus which comprises an area of 399.7 acres, Berkeley is made up mainly of middle and upper class homes.⁷ Therefore, it is not surprising to find that real estate interests are given important consideration in matters affecting the city.

There is a main business section in Central Berkeley. The ground area zoned for retail and commercial services, in this area of 100.4 acres, consists of 24.4 acres. A similar area exists along Telegraph Avenue, and smaller districts are scattered throughout the city. There is only one industrial area in Berkeley, and that consists of 546 acres, west of San Pablo Avenue, zoned for light industrial use.⁸

The relatively small amount of business and industry in Berkeley precludes a large industrial or business population. The working population, in the main, consists of people associated with the University or with the business and industry in the city, and those who work in San Francisco and Oakland. (Berkeley is known as one

⁷ The amount of land zoned for residential use in 1950 was 3,609 acres

⁸ There is a residential district west of San Pablo Avenue, too.

of the bedrooms of San Francisco).⁹ Because the University property is tax-exempt, taxes are high in Berkeley, and real estate prices and rentals are high, too. Consequently, Berkeley does not attract members of the lowest income group of the general population.

Albany is a small city contiguous to Berkeley. The population count in 1940 was 11,433. The principal "industry" in Albany is retail stores. There are several industrial establishments in Albany¹⁰ along with Golden Gate Fields, a race track. Aside from the foregoing, Albany is composed of residential areas.

The main objections of the cities of Berkeley and Albany to a public housing project have been cited in a previous section.^{11 11} The official voice of the city of Berkeley, namely the City Council, did not approve of public housing per se, and did not want such housing within the city's boundaries, thereby refuting by its existence the oft-heard claim that, "Berkeley has no slums."¹² Even the wartime swelling of the population (an increase of 14,477 or 16.9%) failed to impress the City Council to the extent that it would consider public housing.

9 The city of San Francisco encompasses such a small area that the surrounding cities and towns must house many of the people who work there

10 The industries consist of the Hill Lumber Co., and the Golden Gate Stucco Co., which are situated right in the heart of a fairly good residential district and are an adhesive company and iron and structural works along the waterfront.

11 cf. p. 35.

12 Previous to the war, public housing (the 1937 program) was constructed as a means of eliminating slums.

The specific objections of Berkeley¹³ to Codornices Village centered around the fact that the project was built on the last large site of land available to industry. The University objected to the use of its land in Albany because it wanted to use the site for experimental horticultural purposes. It was contended that once the streets and foundations were put in, there could be no further use of the land for its original purpose.¹⁴

Albany's objections to Codornices were based upon the "undesirable element" which would be housed in the project.¹⁵ The townspeople specifically objected to the housing of non-whites in the project. It appears that the main worry in Albany was that "Negroes would drift in and obtain a foothold in the town, and Albany would eventually become like South Berkeley."¹⁶

The reference to South Berkeley led the author to look for a description of this area. The following description was found in a report called, "An Outline for a Survey of the South Berkeley Area", which was written by a student group in the Department of City and Regional Planning at the University of California:

13 All references to Berkeley mean the City Council of Berkeley.

14 Mr. Richard Hartsook, Real Estate Officer of the University.

15 It is interesting to note that these objections were raised before any people were housed; therefore the people of Albany could not know what the future residents would be like.

16 Some information about Albany was obtained from a confidential source.

"South Berkeley...is, for the most part, reasonably attractive, having brightly-painted homes, well-kept lawns and clean tree-lined streets. It is an inter-racial area...and consists primarily of owner-occupied homes. The area is devoted largely to single-family type dwelling units, well-landscaped and well-maintained. Housing conditions appear to be good."¹⁷

"Albany never had a Negro child in their schools. We had the most trouble with Albany in that matter." Mr. Melville's statement recalled another reason for Albany's objections to the project. Some citizens of Albany did not want their children to go to the same school as the Negro children. These people were told by the authorities that there would be an elementary school on the project grounds to take care of the residents in the project. "But what about the high schools?" they asked.

The foregoing questions and objections were raised by various people in Albany at several public meetings and at several city council meetings.¹⁸ One of the public meetings was called by real estate brokers of Albany and Berkeley, when the project was first contemplated. At this meeting, the people were told that the housing project would decrease property values in Albany and would increase the expense of police protection, fire protection, education, etc. to the taxpayers. Statements about the "undesirable element" that would be brought in by such a project were stressed. Other matters, such as the fact that the Federal government would be paying rent and making payments in lieu of taxes to the city on property that had heretofore been tax exempt, and the fact that the Government would construct the school and community buildings and contribute to the cost of maintaining these facilities were not mentioned.

¹⁷ Univ. of Calif., Dept. of City and Regional Planning, *An Outline for a Survey of the South Berkeley Area* (Berkeley: Spring, 1951), pp. 5-8

¹⁸ See fn. 16.

Berkeley was chosen for studying the attitudes of the community rather than Albany, primarily because Berkeley is much the larger of the two cities and therefore presents a broader picture of the reaction of the community, pro and con, towards public housing, and Codornices Village in particular. The choice of studying the City Council meetings rather than other organs of community life was based upon the following reasons: (1) The City Council is the official governing body of Berkeley. Hence, the decisions of this group have greatly affected the state of public housing in Berkeley. (2) The attitudes of the members of the City Council, as revealed at the meetings, indicate some of the pressures and influences exerted upon members of a governing body of this sort. (3) The City Council meetings, other than the Conference Sessions,¹⁹ are open to the public. Therefore, in matters of importance, such as public housing has been in Berkeley, a cross-section of community opinion, as stated at these meetings, has been made available.

The minutes of the City Council meetings were written in

19 Conference sessions are called for the following reasons: to take testimony of the Council on important matters that will come up at later Council meetings (which are open to the public); to discuss appointments to various commissions; to discuss important personnel problems; such as rules and regulations which the city manager feels they should know about; to discuss important expenditures of money, such as purchases of property or operating values to personnel; routine matters are not considered at these meetings. The conference sessions are held in executive session, where no voting is done and minutes of the meetings are not taken.

detail until 1948.²⁰ However, as a result of conference meetings, and meetings of special committees, the information contained in the minutes is often piecemeal and sometimes unexpected, e.g. the minutes may contain recommendations to a committee or the report of a committee of which no mention in regard to appointment or existence had heretofore been made in the minutes.

The first mention of public defense housing is found in the minutes of a special meeting, called on November 19, 1942. This meeting was called to hear a report of a committee that had met the night before, "to look into the matter of establishing a local housing authority in connection with public defense housing." The committee consisted of certain members of the City Council, a representative of the National Housing Agency, representatives of the Chamber of Commerce and the Berkeley Realty Board, the City Attorney and the executive assistant. Among the facts brought out by the report of the Committee were the following:

1. In connection with defense housing projects, it is the general policy of the Federal Housing Authority that these projects should be located in the communities where major defense plants are located, and placed as close to such plants as possible. The reason for this policy is that by this procedure a large part of transportation difficulties for workers will be avoided.
2. In connection with defense housing projects there is also the problem of obtaining sufficient materials for new construction. In this situation, allotments have been made of the amount of defense housing projects and in this immediate vicinity...the entire amount of allotments has already been designated for the cities of Alameda, Oakland, and Richmond.

20 In 1948, a tape recorder was introduced, to take account of the meetings. However, most important information is still written into the minutes.

3. "There is, at the present time, no plan for any defense housing in Berkeley, and as the entire allotment has been made, it does not appear that there will be any." The Committee felt, in the light of the preceding facts, it would appear a wise act to create a local housing authority in Berkeley and recommended that none be established at this time.

Before a vote was taken on adopting a policy based on the report of this Committee, Councilman Martin reminded the Council that, "...when the Belt Line railroad is completed, the Federal government may construct low cost housing units, and...it might be well to have a housing authority set up so that when and if this does occur the city will be able to handle the situation...." The City Council, however, adopted the report of the Committee as a policy of the Council.

In December, 1942, City Manager Fiske, in reporting on a recent trip to Washington, D.C., stated that he checked with the National Housing Agency to find out if there were going to be any new units built in Berkeley and "...was informed they were building some in Richmond and Alameda, but not here as they did not think there were enough materials available to build any more." However, on August 20, 1943, a special meeting was called to consider a proposed housing project with units to be built in Berkeley and Albany. A letter from Langdon Post, Director of Region X, Federal Public Housing Authority, which explained why this particular plot of land was selected by that agency, was read at this time.²¹ Mr. Post also pointed out that

21 Cf. p. 34.

"...in order to lend greater assurance for the speedy demolition of those buildings after the emergency, they are contemplating leasing the land rather than purchasing it...." and called attention to Section 313 of the Lanham Act, as amended...which provides that the Administrator shall, as promptly as may be practicable and in the public interest remove all housing under his jurisdiction which is of a temporary character...; that such removal shall be accomplished not later than two years after the President declares the emergency has ceased to exist with the exception only of such housing as the Administrator, after consultation with local communities, finds is still needed...."²²

At this meeting too, letters were read from the Berkeley Chamber of Commerce and the Berkeley Manufacturers Association. The Chamber of Commerce submitted a resolution which set forth, among others, the following points:

1. The ...Chamber of Commerce recommends a settled policy of opposition to any program which will result in the organization of any housing authority...in this city;
2. The Chamber oppose any construction program which will take property off the city tax rolls...²³ or any program which will produce housing units not subject to the normal city ordinances governing construction;
3. The Chamber oppose any invasion by the construction of housing units of the land of this city now zoned for industry unless and until it shall be established by proper authorities that such move is dictated by paramount necessities of the war effort;
4. The Chamber expresses its support of any program for the construction of housing units by private enterprise...;
5. The Chamber expresses its belief that there are sufficient

²² Italics are author's.

²³ The Lanham Act provides for payments in lieu of taxes. For explanation, cf. pp. 35-36.

private builders ready, able and anxious to build private housing units...if they are permitted to do so by the granting of necessary priorities;²⁴

6. The Chamber expresses its conviction that there are a sufficient number of parcels of land near to transportation facilities to provide privately constructed units in number to accommodate the emergency;²⁵
7. (10) The Chamber insists that no steps be taken which will in any way jeopardize or reduce the established living conditions in...Berkeley.

The Berkeley Manufacturers Association submitted a "formal protest to the construction of public housing units in the industrial area." They believed that, "immediately following the war, large eastern manufacturers will be desirous of locating on the Pacific coast and public housing would hinder for several years a further expansion of our industrial area."

The consensus among the City Council members was to protest the construction of this public housing in Berkeley. Councilman Work being the lone dissenter. Councilman Work felt that "...all means in our power should be called upon to provide roofs over the heads of these people coming here to work in defense plants", and that "Berkeley should be willing to cooperate on most reasonable terms which will protect our citizens, as well as give those new citizens all the required facilities." Councilman Stears, Jr., maintaining the opposite position, felt that the City Council should protest the

²⁴ For reasons as to why many private builders were not granted priorities, cf. p. 13.

²⁵ The Chamber of Commerce evidently knew the contents of Mr. Post's letter before it was read at this meeting. For this statement is an answer to the part of Mr. Post's letter which is mentioned on p. 35 (d).

public housing construction on the following grounds: "(1) - There is no need for these units to go into Berkeley at the present time; that there are many other sites available in Richmond, El Cerrito, San Pablo and areas in that community where proximity to defense industries would be items of economy and convenience to the workers and where vast settlements of public housing²⁶ have already been established; (2) - That there has never been any public housing in Berkeley...this is not the type of housing we want and that adding 400²⁷ units in other communities would not burden them as it would Berkeley; (3) - that he knows private builders in this community for the last year have been screaming at the National Housing Agency to let them build homes for immigrant workers, but they have been turned down on the grounds that public housing served the needs better; that (with private builders) the projects would have been scattered throughout the city...and not in one section...that will mean from 1200-1500 people overburdening the schools and other community facilities, e.g. fire and police protection; (4) - that about three or four weeks ago was the first we know about this project; that...we heard rumors that a public housing project was being contemplated for Berkeley and Albany; that there has been no contact with our local authorities; that we should be given the opportunities to rule ourselves."²⁸ Councilman Hoyt agreed with Mr. Staatss. She "knows there

26 cf. p. 34 (c).

27 At this time, only 400 units had been planned for Berkeley.

28 cf. pp. 43-44, where the City Council decided not to establish a local housing authority.

are plenty of other available places and as the citizens have wanted this industrial section preserved...we should try to discourage this project." Councilman Parce was in favor of protesting. He "thinks the work can be done by private enterprise; that there would be smaller units scattered throughout the city and...believes the private builders could do this work in quicker time." Councilman McKee could not see the need of public housing in that locality. A Councillor Committee was appointed to protest the construction of this housing. This committee drafted a letter which was approved at a meeting on August 25, 1943.²⁹

In reply, a letter from Langdon Post was read at the meeting of September 9, 1943, in which Mr. Post stated he had made certain inquiries of the office of the Regional Representative of the National Housing Agency and had been informed that that office was making a further survey of the possibility of granting more priorities for private builders in Berkeley, but such priorities would be in addition to the public housing which the National Housing Agency deems essential at this time.... The selection of a site for public housing in Berkeley had not been based on arbitrary opinions but grew out of extensive surveys and was chosen primarily in the interests of the preservation of critical materials by reason of the proximity of the project to the industrial electric line."

Councilman Staats spoke in answer to this letter and others received from John Blandford, Jr., Administrator, National Housing

²⁹ The approval was given in Resolution 26, 594-N.S. The vote was unanimous, Councilmen Corley and Mork absent

Agency, Senator Hiram W. Johnson, and Senator Sheridan Downey. He said he "feels the city must protest as it is yielding sovereignty of the city if this project is allowed to go in; that it would be different if the committee and the citizens of Berkeley believed this was the only solution to the problem but they are sure there are other places available for this particular project; that it is a local problem and he feels the city government should have the greater control over the matter."

A representative of the Berkeley Defense Council stated that "the Civilian Defense, at its last meeting, had endorsed the stand of the Council protesting the public housing construction and that Berkeley wants to preserve the characteristics of a University community and this type of construction is not in keeping with a university city and that we do not want our returning servicemen to find a transformed community."

At the meeting of September 29, 1943, Councilman Corley brought up the fact that "this matter of public housing could be taken up with the Truman War Investigating Committee of Washington, D.C.; that it would be possible to have the committee look into the housing conditions in Berkeley and nearby defense areas." Councilman Staats gave an example to show that private housing is built faster than public housing, and cited the case of 3,000 units in Richmond which are vacant because there is no furniture available for the apartments. Councilman Work brought up consideration of the shipyard workers. He stated he knows they are terribly in need of housing "that he comes in contact with those very workers and knows how desperate they are for proper housing facilities; that these buildings run into thousands of

units; that it is possible that an individual house could be built and occupied in 90 days...but he doubts that private builders can construct 3,000 or 4,000 houses as quickly as that; that the fact remains the people should be properly housed...; that he feels it is sabotage to interfere with the housing program when it is done, either by private or public agencies; that every step should be taken by the Council to speed up the occupancy of the existing units and the construction of new units, if they are necessary.

In the beginning of October, 1943, communications were received from the Berkeley Democratic Club (which requested that "the Council give its most serious consideration and support to the Federal housing project that the ...government is planning to build"), and the Alameda County Industrial Union Council (which called "upon the city...to give full cooperation to the Federal government in its efforts to provide housing in this critical manpower area").

It is in citing these communications that race relations is first mentioned in the minutes. Councilman Staats advised the Council's correspondent to point out when answering these communications, "that the committee during the course of deliberation on this problem has never brought up the question of racial prejudice."³⁰

On October 26, 1943, a special meeting was called at which Mayor Robertson, reporting for the Councilor Committee, stated "a letter had been received from the Federal Public Housing Authority enclosing a proposed lease of all the streets and alleys in the area

30 The author was unable to obtain these letters.

to be taken by the Government for the housing project...and a request that the lease be signed by the city and returned to them." Councilman Martin made a motion, seconded by Councilman McKee, "that a letter be sent...to the Federal Public Housing Authority advising that the city would not enter into the agreement contained in the lease as submitted." A telegram was also sent to Senator Truman vigorously protesting the proposed public housing project.

By November 10, 1943, however, indications that the project was on its way were evidenced by a communication from the Berkeley League of Women Voters which stated that "the League has watched with interest the issue concerning the Federal housing project in Berkeley and now that the project is an actual fact...would like to recommend that a housing committee...of selected Council members...appointees from the various departments of the city government and school system as well as representative private citizens be appointed to cooperate with Federal authorities in the interest of health, education, child care center and utility problems so that residents of the project would be properly cared for and the facilities of the city's services wisely used."

After the letter had been read, Mayor Robertson stated that "construction had started...; that there will be between 800 and 1,000 units and a number of problems will now become an actual fact; that there will be fire, police, public utilities and child care problems resulting from this project and that the city must be prepared to understand these things and be able to handle them," and suggested that he be authorized "to appoint a war housing committee." Councilman

Staats added that one of the functions of the committee should be to study generally the housing situation in Berkeley and to contact the Federal authorities relative to the matter.

The second time that the matter of race relations is referred to in the minutes is on January 19, 1944. At that meeting, Byron Rumford, of the Berkeley Inter-racial Committee, "presented a petition signed by approximately 283 citizens requesting that the Council extend its leadership to include a positive policy of integrating racial minorities into this community...; that the West Berkeley housing project provides an excellent opportunity for such democratic action and that by actively supporting a policy of non-discrimination in this project, Berkeley will not only be relieving an acute housing situation but will also be cooperating with the official regional policy of the Federal Public Housing Authority³¹ and urged that the Council make a statement of support for this policy of non-discrimination..." Councilman Staats declared that "the city Council has had nothing to do with this housing project since construction was actually started...; that he did not believe the tenants had been selected so far³² and...he believed this petition should be referred to the War Housing Committee..." The matter was unanimously agreed upon, Mr. Mork being the only absent member.

On March 15, 1944, Mayor Robertson stated, "with reference to the petition of the Berkeley Inter-racial Committee, that the Housing Committee recently had a meeting, but that all

31 cf. Part II, Chapter VI, Regional Policy, p.

32 See next page.

the time had been devoted to tax matters. However, he had mentioned the other matter to the group and they had promised to meet very shortly to study this particular matter."³³

At the meeting of April 19, 1944, a petition was read from approximately 110 residents, stating that they do not want colored people in their neighborhood which is bounded by Dwight Way and the Southern Pacific and Fifth Street.

On August 23, 1944, Mayor Robertson brought up the question of the housing shortage and stated, "he felt the housing situation as far as the war workers were concerned was not getting any worse, although he realized that many service people were not able to find places to live...."

At the meeting of December 6, 1944, the President of the League of Women Voters, Mrs. Schoer, requested the appointment of a local committee which would fully survey and coordinate all housing data. This request was initiated as a result of a crisis that arose when 450 Navy families were requested to leave their quarters at Codornices Village last week in order to make more room for civilian workers who are expected to arrive to work at the Mare Island Navy Yard. The League "understood that the Council had planned to set up a committee to investigate all of the conditions and to see that the citizens of Berkeley had adequate housing; that all of the information relative to the housing situation should be gathered so the Council would have it available and be able to make an immediate decision

³³ The petition, and the pressure exerted at the meeting of March 15, 1944 to take up the matter of the petition indicates that there must have been some knowledge that racial minority groups would be housed in Codornices Village.

as to what should be done." Mayor Robertson replied that "a survey of the present housing conditions in Berkeley is pretty well covered by the Building Department...; that the housing itself is a Federal proposition and that any investigation would need to be made by an official government agency instead of a local committee...; that while he feels there is a shortage of housing allotted to Mare Island, at the same time, in Richmond or other places there may be available housing where those workers may be placed."

Mrs. Schoer answered that "they are familiar with what is being planned for Richmond and Mare Island;³⁴ that it is planned to bring in a great many more workers and that cities are going to be faced with a repetition of families being 'dumped' into the streets without any place for them to go," and urged that a committee be appointed to coordinate the information and to work with the war housing authorities.

Councilman Martin stated that "after all public housing is a Federal problem and the Council has no jurisdiction over the situation."³⁵ Mayor Robertson stated "he was fairly well informed with regard to the problem at the present time, and that a local committee entering into a controversy about the housing conditions in some other city might be detrimental to national defense and that he felt the Army, Navy and Housing Agency, and our congressmen are fully informed

34 This information, if able to be obtained by the League of Women Voters, must have been available to the public.

35 Contrast this statement to that by Councilman Staats on pp. 46-47

about the housing problem in this area."³⁶

The foregoing illustrates the early community reaction to Codornices Village. Later community attitudes will be presented as part of the development of the Village.

36 It should be noted that Mrs. Schoer requested the appointment of a local committee to survey and coordinate all housing data (the author would assume this to mean public and private housing), to see that the citizens of Berkeley had adequate housing.

PART II - RACE RELATIONS

CHAPTER V WASHINGTON NATIONAL POLICY

The term "national policy," as used in this study, has two meanings. It may refer to a law enacted by Congress, or it may refer to an interpretation of the law by the federal agency authorized to do so. Below are set forth excerpts from the national policy which are relevant to the subject of race relations in housing. However, when reading these excerpts, it is well to bear in mind the following political factors, as stated by Catherine Bauer, which have an important bearing upon the formation of laws and policies at a national level:

1. Any Federal law must apply to the South as well as the North. Any non-segregation provision would therefore tend to kill any housing legislation.
2. If non-segregation were dictated by Federal policy rather than by law, it would simply mean either non-enforcement in the South or no Federally-aided housing in the areas with the worst slums, which are mainly occupied by Negroes.
3. On the other hand, discrimination has become a major political issue in the North ever since the early years of the War (World War II), and the Administration increasingly sensitive to it. However, even when they want to promote non-segregation, they must rely mainly on Race Relations Advisory ability to persuade local agencies to take the steps.

Housing Act of 1937¹

Policy: To promote the general welfare of the Nation by employing its funds and credits...to assist the several states and their political subdivisions and to alleviate present and recurring unemployment and to remedy the unsafe and insanitary housing conditions and the acute shortage of decent, safe and sanitary dwellings for families of low income, in rural and urban communities, that are injurious to the health, safety and morals of the citizens of the Nation.

The policy of the Act states that assistance shall be given to promote the general welfare of the Nation. This broad term covers all people living within the borders of the United States. However, the law states that the people who are assisted must be citizens, and those for whom housing is built must be families of low income.

"Families of low income" are defined as:²

Families who are in the lowest income group and who cannot afford to pay enough to cause private enterprise in their locality or metropolitan area to build an adequate supply of decent, safe and sanitary dwellings for their use.

These two qualifications are the general requirements for admission to public housing.

USHA, Manual on Policy and Procedure, Bulletin 18, Feb. 13, 1939

1. The local housing authority decides whether local conditions indicate that there should be any distribution along racial lines.³
2. Although it is the responsibility of the local housing authority to decide its own racial policy, certain desirable principles may be suggested for application in this connection:⁴

1 U.S. Statutes at Large, v. 50 *(Washington) U.S. Congress, p. 888.

2 Loc. cit.

3 United States Housing Authority, Manual on Policy and Procedure. Bulletin #18 (Washington, D.C.: February 13, 1939), p. 7.

4 Ibid., p. 8.

1. The development of public housing projects for white occupancy in areas now occupied by Negroes or other minority racial groups is undesirable.
2. Whenever exceptions are to be made to this general policy, the local authority should demonstrate the circumstances which it believes justify the exception.
3. If it is decided to develop sites which are either inhabited now by members of more than one race or in the case of vacant sites, are contiguous to neighborhoods which are inhabited by different races, local authorities should plan projects open to members of these different groups.

These principles appear to suggest that the local authority use the method of the "neighborhood pattern" in determining the occupancy of the projects. The neighborhood pattern, when applied in this manner, consists of basing the racial occupancy of a project upon the racial occupancy of the neighborhood in which the project is to be located. This method of tenant selection necessarily limits the amount of housing available to various racial groups by being available to only one group if the project is located in a neighborhood which is occupied wholly by that one group.

USHA, Manual on Policy and Procedure, Bulletin 22, May 1, 1939

In projects designed to rehouse different racial or nationality groups, the ratio of each to be admitted should be predicated upon existing local conditions and needs. Where special or mixed population groups are to be tenants of a project the full cooperation of representatives of agencies familiar with the problems of such groups should be enlisted in establishing tenant selection policies.⁵

Here is an indication that the United States Housing Authority

⁵ United States Housing Authority, Manual on Policy and Procedure. Bulletin #22. (Washington, D.C.: May 1, 1939), p.12.

recognized the need for housing on the part of minority groups. This bulletin indicates an attempt, on the part of the United States Housing Authority, to assure minority groups of a fair share of the public housing allotted to a community by suggesting that the tenants be selected according to need.⁶

P.L. 671, June 28, 1940⁶

Title II: The Navy and War Departments and the United States Housing Authority are hereby authorized to cooperate in making necessary housing available for persons engaged in national defense activities. "Persons engaged in national defense activities" shall include: (1) enlisted men with families who are in naval and military service or employees of the Navy and War Departments; and (2) workers with families who are engaged or to be engaged in industries connected with and essential to the national defense program.

In this section of the Act are stated the general requirements for admission to war housing.

P.L. 849, October 14, 1940, Lanham Act⁷

Section 1. In order to provide housing for persons engaged in national defense activities and their families.

Section 2. Persons engaged in national defense activities... (definition the same as P.L. 671).

Lanham Act, as amended June 28, 1941⁸

Section 203. (4) Public works shall be provided on the basis of need and in determining need no discrimination shall be made on account of race, creed or color.

Section 201. "...the term 'public works' means any facility necessary for carrying on community life...primarily.

6 U.S. Congress, Statutes at Large, v. 54, pt. 1, 76th Congress, 1st session (Washington, D.C.: Government Printing Office, 1940), pp. 681-2.

7 Ibid., pp. 1125-26.

8 U.S. Congress, Statutes at Large, v. 55, pt. 1, 77th Congress, 1st session (Washington, D.C.: Government Printing Office, 1941), pp. 362-3.

schools, waterworks, sewers, sewage, garbage and refuse disposal facilities, public sanitary facilities, works for treatment and purification of water, hospitals and other places for care of sick, recreation facilities, and streets and access roads.

Lanham Act, as amended January 21, 1942⁹

Section 7: Section 305...is amended by addition of the following sentence: "Consultation shall be had with local public officials and local housing authorities to the end that projects constructed under the provisions of this Act shall conform in location and design to local planning and tradition."

USHA of 1937, as amended July 25, 1942¹⁰

Title III: (c) in the selection of tenants...(ii) in initially selecting families for admission to dwellings...the public housing agency shall...give preference to families having the most urgent housing needs....¹¹

Again, here is a reiteration that families should be selected on the basis of need.

Manual on Policy and Procedure 3500:k (11-1-49), Basic Policies in the Disposition of Projects in the Public War Housing Program

Part II, 7. Review of local recommendations...

The Field Officer shall, in his review, obtain the advice of his staff on any aspects of the local recommendations which fall within their respective specialties. The opinion of the Racial Relations Officer shall be obtained in all cases.

Part IX, 1. Minority Racial Groups

No provision in this order shall be construed or administered to require the sale or disposition of any housing occupied or assigned for occupancy by members of any minority racial group in such a manner that such housing (if sold for continued use as housing) would not continue to be available for occupancy by members of such minority groups.

⁹ U.S. Congress, Statutes at Large, v. 56, pt. 2, 77th Cong., 2nd Sess. (Washington, D.C.: GPO, 1940), p. 11.

¹⁰ U.S. Congress, Statutes at Large, v. 63, 81st Cong., 1st Sess. (Washington, D.C.: GPO, 1949), p. 423.

¹¹ here are other preferences in tenant selection, e.g. veterans and families that are displaced by the projects. However, these preferences have not been mentioned since they are not relevant to the matter under discussion.

PHA Bulletin, January, 1950 - Speech by Lawrence M. Bloomberg
Chief, Economics of the FHA

"Where separate projects are chosen by communities, the Public Housing Administration will require that projects be made available relative to the need of the respective racial groups. Where families of all races are to be housed in the same project, the Public Housing Administration will require that the proportion of tenants of the minority race be at least equal to their proportion among the families eligible for low-rent public housing...The results of low-rent housing surveys of the 1950 housing census will be used as a guide in enforcement of this basic policy."

This speech indicates a more definite attempt, on the part of the Public Housing Administration, to assure minority groups of a proportionate share of low-rent public housing. Contrast the definite language of this speech with the general wording of Bulletin #22, issued by the United States Housing Authority in 1939,¹² in which admittance to projects was to be "predicated upon existing local conditions and needs."

Form PHA-2090, August, 1950 - Instructions to Local Housing
Authorities Concerning Conversion of Permanent War Housing
Projects to Local Use

4. b. (3) With respect to the total low-rent housing program of the community (including the housing requested for low-rent use), any existing low-rent projects and any low-rent projects to be developed under the Housing Act of 1949, equitable provision shall be made for low income families of all races in relation to their respective housing needs.

5.

Manual on Policy and Procedure 3525.1 (5-30-50), Processing
Applications for Conversion of Permanent War Housing Projects
to Local Use

6. Processing Applications

- b. (4) The Racial Relations Section shall review the application for conformance with PHA racial relations policies.

It is well to note, at this point, that all local agencies that manage public housing are expected to abide by the policies set

12 cf. USHA Bulletin #22, p. 58.

down by the Federal agency (which has been authorized to interpret the housing legislation passed by Congress). If the operations of a local housing authority do not conform with Federal policy, the Federal agency may take away its annual contribution to the local body.¹³ In the case of war housing, which has been built by the Federal government and leased to the local housing authority, the Federal agency may break the lease and take over the management of the projects.

Low Rent Housing Manual 102.1 (2-22-51), Racial Policy

The following general statement of racial policy shall be applicable to all low-rent housing projects developed and operated under the USHA of 1937, as amended:

1. Programs for the development of low-rent housing, in order to be eligible for PHA assistance, must reflect equitable provision for eligible families of all races determined on the approximate volume and urgency of their respective needs for such housing.
2. While the selection of tenants and the assigning of dwelling units are primarily matters for local determination, urgency of need and the preferences prescribed in the Housing Act of 1949¹⁴ are the basic statutory standards for the selection of tenants.

Here again is a reiteration that public housing be provided for all racial groups on the basis of need. However, in this statement of policy the "volume and urgency of their respective needs" is to be the basis for determining the amount of housing accorded to members of various racial groups. Heretofore, there had been no mention of how to determine "equitable provision" for members of all racial groups.¹⁵

¹³ cf. Chapter I, p. 5.

¹⁴ The preferences prescribed in the Housing Act of 1949 are for veterans and families of servicemen.

¹⁵ See especially p. 61, PHA Bulletin, January, 1950, and p. 61, Form PHA-2090, August, 1950.

Low Rent Housing Manual 207.1 (5-25-51), Standards for PHA-Aided Low Rent Housing

1. Introduction: a. Scope. This section contains standards to be followed by local authorities in the selection of sites and the design and planning of low-rent housing pursuant to the USHA of 1937, as amended.¹⁶
2. Racial Equity

The housing provided for all races shall be of substantially the same quality, providing facilities and conveniences with respect to all standards and criteria for planning and designing contained in this Manual.

Low Rent Housing Manual 102.2 (5-29-51), Racial Equity in Community Facilities and Projects

In urban communities of small minority group population, where there are identifiable patterns of racial occupancy, there is the possibility that because of the group, it may be inadvertently overlooked in planning Development Programs for low-rent housing. Special measures are prescribed below to assure compliance with PHA policy requiring equitable provision of low-rent public housing for eligible families of all races, determined by the urgency of their respective needs for such housing.

1. No Development Program shall be approved¹⁷ unless the local authority agrees that, whenever an analysis of survey data reveals the existence of an eligible market among families of the minority group in the locality, dwelling units will be constructed for such minority group families at the same market ratio which is being used for the majority group families in the locality, if the application of such ratio will produce a market among families of the minority group of two or more units.
2. In every case where survey findings fail to show a sufficient effective market among families of minority groups, the Field Office Racial Relations Officer shall make a field investigation. He shall certify as to:
 - a) the lack of an eligible minority group market; or
 - b) the existence of an eligible minority group market and the estimated number of eligible applicants.
3. If no eligible market of minority families is found at the time of the Racial Relations Officer's investigation but one subsequently develops, the PHA and the local

¹⁶ cf. p. 59, Lanham Act, as amended January 22, 1942.

¹⁷ Cf. Chapter I, p. 7.

authority must:

- a) if the program is at a stage where this is practical, revise the Development Program to provide housing for eligible minority families; or
- b) if the Development Program has progressed beyond the stage where revision is practical, include in any subsequent program for this locality equitable provisions for eligible racial minority families.

It should be noted that this statement of policy does not state when surveys should be taken, or how often surveys should be taken to determine whether there exists an eligible market among minority group families.

Low Rent Housing Manual 203.8 (3-27-52), Site Selection Policies in Relation to Problems of Minorities

- 2. The following policies should be followed in the selection of sites of public housing projects:
 - a. Sites for public housing projects shall be selected in such manner as to make possible the application of the policies on racial equity in tenant selection outlined in Section 102.1, Racial Policy.
 - b. The number of dwelling units in a local program which are developed for racial minority occupancy shall not be less than the number of units destroyed which are in present minority occupancy.
 - c. The selection of sites for public housing should not result in a material reduction of the land area in the locality which is available to racial minority families.
 - d. Every effort should be made to avoid the selection of sites which will result in the displacement of minority group populations.
 - e. Use of congested slum sites which are occupied predominantly by racial minority groups should be made only where this is possible to comply with the provisions of Section 213.2, Relocation of Slum Occupants.

In this statement of policy, the Public Housing Administration takes cognizance of the fact that racial minority groups are usually limited in the amount of land available to them for occupancy. An effort is made therefore not to displace minority groups, but if this is unavoidable, to include in the public housing program a number of

dwelling units at least equal to those that have been destroyed to make way for the program.

The Urban Redevelopment program, organized under Title I of the Housing Act of 1949,¹⁸ has raised many new problems in race relations and has resulted in increased recognition by the Federal government of the problems of racial minority groups. The following article reports on a policy issued in December, 1951, by the Housing and Home Finance Agency, which is related to land areas for minority groups.¹⁹

The community, the policy declares, must "assure not only that the families to be displaced are rehoused in accordance with statutory requirements and objectives without undue hardship, but also that the rehousing does not itself produce overcrowding and new areas of blight contrary to the intent of the Act." This policy states "will usually require expansion of housing facilities and living space, particularly where racial minorities are to be displaced."

The policy further directs both the Public Housing Administration and the Division of Slum Clearance and Urban Redevelopment, in removing slum sites, to ensure that localities will provide for expansion of housing on vacant land for displaced racial minority families.

The Housing and Home Finance Agency therefore has recognized the need for additional housing space by minority families when they are displaced by slum clearance activities. The expansion of housing to vacant land, for those families, will provide additional land space for minority groups who might otherwise be restricted to certain areas within the community.

Excerpts from a Letter to Dr. Joseph A. Randall from John Taylor Egan, Commissioner, Public Housing Administration, April 7, 1952 - Clarifying the PHA's Requirements for Racial Data...

¹⁸ Title I provides for Federal loans and grants to be given to local governments to aid them to clear slum and blighted areas for redevelopment by private or public builders

¹⁹ NAIRO Reporter, v. II (March, 1952), No. 6.

"...the Public Housing Administration requires that there shall be equitable distribution of units of public housing, and that all eligible segments of the population be served on the basis of need. Actual operation and management rests with the local housing authority and that body determines what the occupancy pattern shall be in its community. The sole purpose of PHA in requiring racial data is to determine whether the housing needs of all segments of the population are being equitably served in proportion to the amount of housing available."

The foregoing excerpts from the national policy reveal a growing awareness, on the part of the Federal government, of the housing needs of racial minority groups. Apparently, the early Federal housing agencies thought general interpretations of the Statutes would be sufficient to make public housing available to minority groups in proportion to their numbers among eligible families for low-rent public housing. However, some local housing authorities evidently failed to make equitable provision for families of racial minority groups, for it may be noted that the language of the national policy has become more specific, with reference to housing for this segment of the population.

CHAPTER VI

REGIONAL AND LOCAL POLICY

Regional Policy

The Regional Offices of the Federal housing agency serve to implement and clarify the policies set forth by the central agency. In matters such as the occupancy patterns of public housing projects, where the pattern of housing racial groups is left to the discretion of the local agency,¹ the Regional Office may make suggestions but is powerless to enforce them. In the directly-managed projects however, where the "local agency" consists of the project manager (who is under the supervision of the Regional Office and the Central Office), the Regional Office has the power to enforce the policies that are set down by the manager in the administration of the project. The following are statements of regional policy relevant to the housing of racial groups in the region of which California is a member.

Lanham Act, as amended June 28, 1941²

Section 203: (4) Public works shall be provided on the basis of need and in determining need no discrimination shall be made on account of race, creed or color.

1 Cf. Chapter II, p. 20.

2 U.S. Congress, Statutes at Large, v. 55, pt. 1, 77th Cong., 1st Sess. (Washington, D.C.: Government Printing Office, 1941), pp. 362-3.

Langdon W. Post's³ Clarification of this Section of the Lanham Act, January, 1943⁴

"...I should like to state...that it is the general policy of the Federal Public Housing Authority that there shall be neither discrimination nor segregation on any project under its jurisdiction."

Excerpts from a Regional Circular, March 29, 1946

FPHA Commissioner states:

Experience in public housing has revealed that the operation of projects exclusively reserved for separate social, economic or racial groups has many effects which should be carefully evaluated by local housing authorities prior to making a decision with respect to occupancy patterns in projects under their jurisdiction. This involves consideration of such factors as the long-range accommodation of public housing facilities to the changing social, racial and economic composition of its housing market as well as the costs and problems incident to providing and managing separate facilities for different groups. In those communities where state or municipal laws provide for unsegregated public facilities such as schools or where, in the absence of such laws, an unsegregated pattern exists; or where citizens expressly request consideration of open occupancy for public projects, this approach, in all or part of the community's total public housing program, appears not only feasible but sound.⁵ Where such conditions are apparent, it is the responsibility of the FPHA representative during normal contacts with the local community to present those considerations.

3 Director, Region X, FPHA

4 This excerpt plus Section 203 of the Lanham Act was taken from the files of the Vallejo Housing Authority. It is interesting to note that this housing authority maintains segregated projects.

5 The use of a non-segregated occupancy pattern in part of a community's public housing program has been shown to eventually result in a totally segregated program, for those families who are barred from occupancy in the segregated projects will flock to the non-segregated projects, and those families who are free to occupy either the segregated or non-segregated projects will be prevented from occupying units in the non-segregated projects, because of the demand for those units by families who are restricted to the non-segregated projects.

FPHA, Region VI Director⁶ states:

I heartily agree with the above statements. I should also like to add that within Region VI non-segregation is the normal pattern. Where minorities are present in the communities, they live with all elements, including considerable proportions of whites. Even in the so-called Negro or Latin quarters, this non-segregated pattern exists. Our management experience after long operation of war housing projects unquestionably demonstrates the difficulty of segregation, particularly in turnover and reassignment of vacant units. On the other hand, where no segregation is practiced, this difficulty has been avoided and the open occupancy by all races in and by itself did not create problems. In fact, even in projects which began with a segregated pattern (e.g. San Diego and Long Beach) non-segregation has been introduced without difficulty.

The regional policy for California and the other states in this region, as revealed by the foregoing statements, appears to favor non-segregation in public housing projects. It is well to keep this in mind when reading the next section, which views the occupancy patterns of the local housing authorities in the Bay Area.

Local Policy

With the rise of the war industries, the mass of people that came pouring into the Bay Area to help the war effort posed quite a problem for the cities in that region. The Bay Area cities had to house defense workers in all available housing and build more, to meet the demands of the shipyards and war industries. Private builders could not fill the great demand for housing; they could not build enough housing for the large amount of defense workers nor could they charge a rent low enough to meet the need of the defense worker. Consequently, The Federal government, under authorization of the war

⁶ Langdon Post.

housing acts, stepped in and constructed war housing projects. Several of the Bay Area cities, anticipating this action on the part of the Government, created local housing authorities to manage the war housing. In those cities where a public housing program had already been started (under the low rent program of the 1937 Act), and in the cities which had created local housing authorities for the purpose of managing war housing, the Government leased the projects to the local housing authorities.

Housing people in a physical sense was not the only aspect that had to be considered in programming the war housing projects. The social phase of the housing program was very important. People who had migrated from every other part of the country were not going to stay in the Bay Area, despite the war effort, if they were not fairly happy living in this region. This problem was accentuated by the fact that a great number of immigrants had been recruited from the South. These people, many of whom came from rural areas, had different living habits, different ways of speaking, etc. They had to adjust to a new way of life.

The cities of the Bay Area, with the exception of San Francisco, Oakland and Berkeley had very small Negro populations prior to the war.⁷ Therefore the cities had never had any particular problem with regard to the housing of this minority group. The Negroes who migrated to the Bay Area during the war, however, had to be housed, as did the whites who were working beside them in defense work. The

⁷ See Chapter III, p. 31.

housing authorities in the Bay Area were confronted with the question of how they were going to house racial groups. Should they segregate--should they not segregate? What would be the outcome, in either case, within the projects? For example, how would southern whites react to southern Negroes sharing the same community life on an equal-status level? What would be the reaction, in either case, of the community outside the projects?

With immigrant families being referred to the projects at the same time the projects were being constructed, there was no way in which certain projects could be set aside for special groups. However, areas and buildings within the projects could be assigned to racial groups. Those cities that had already instituted a permanent low-rent housing program could possibly continue with the policies established for those projects,⁸ or they could change their policy for the "duration" of this temporary war housing, under the assumption that these immigrant families would go back to the sections of the country from which they had originated. The cities that did not have any public housing previous to the war however, had to decide upon a policy which would determine the racial occupancy patterns in the war housing projects, and had no precedent upon which to base their choice. Racial occupancy patterns may take the following forms:

1. Completely segregated - the entire project area is reserved for one racial group.
2. Segregated by project area - certain areas within the project are reserved for one racial group.

⁸ These projects were turned over for war housing, too.

3. Segregated by buildings - certain buildings in the project are reserved for occupancy by one racial group. These buildings may or may not be limited to one area.
4. Partially integrated - in certain areas of a project, Negro and white families live side by side.
5. Completely integrated - throughout the project, members of different racial groups live side by side.

The story of war housing today has taken a slightly different turn than was expected during the war years. Many of the immigrants, finding work and living conditions better in the Bay Area than in other parts of the country, did not return to the states from which they came. The returning veterans and the families of servicemen created a housing shortage equal to that of the war years. The result of this shortage is that the temporary war housing, scheduled to be demolished two years after the "emergency," is still standing and still being used.

The way in which local housing authorities in six of the local communities in the Bay Area met the problem of housing racial groups, their present methods of handling this matter, and their attitudes toward future treatment of the matter are given below.

The City of Alameda

The Alameda Housing Authority is a product of the war. The housing projects, all temporary, were built to house defense workers. Alameda is an island, and there is little chance for expansion of the population. Therefore, the alternatives left to the people living in these housing projects who wanted to stay in the Bay Area after the war were to stay in the projects or look for housing elsewhere in the region. Those

who were able to do so moved out. Their places were taken by veterans. Hence, the projects have full occupancy.

Mr. D. Christie, Executive Director of the Housing Authority, states that there were about ten Negro families in Alameda before the war.⁹ In programming a racial occupancy pattern for the projects during the war, the residents were either segregated by projects or by areas within the projects. The occupancy pattern is the same today. Mr. Christie's ideas on the matter are shown by the following statement:

They're okay in buildings, but as for integration, you can't tell me that will work. After all, people have a right to choose who they want to live with and mixing them together, I think, is a form of discrimination against the whites.¹⁰

The rest of the Housing Commissioners seem to be in agreement with Mr. Christie, for, when asked if the occupancy pattern would be continued as it is at present, he replied, "As long as we run it, it will be that way." The Housing Authority has no plans for future permanent low-rent housing.

County of Marin

The Marin Housing Authority came into being with the advent of war housing. One of the first programs to be developed under the war housing acts, the public housing in this county was built to serve the Marin Shipyards. Marin City,

⁹ cf. Chapter III, p.31, for the increase in the Negro population of Alameda.

¹⁰ Interview with Mr. Christie.

largest of the three housing projects in the county,¹¹ has approximately 1500 units.¹² Built on 237 acres of reclaimed tide lands in 1942, it is a fairly isolated community. Guy Clocca, Executive Director of the Housing Authority at that time, recalls that they were given just ninety days in which to build the project. In those ninety days, the Authority claimed title to the land, put in sewers, gas, electricity and constructed the buildings.

The policy of non-segregation that was instituted at Marin City originated purely by accident, according to Guy Ciocca.¹³ The first buildings to be filled were dormitories for 1200 men. When the buildings were ready the men "descended on us." The employees at the project were so rushed, they just handed out blankets and pillows, and assigned the men to rooms. They did not have time to think about separating the men according to racial groups. "After the men were assigned, things went along peacefully for a time. Then an issue arose from some men and we realized we had a problem."¹⁴ The Housing Authority then proceeded to "feel out" their ground. They found that, for the most part, the people did not object to the integrated

11 The population of Marin City is close to 6,000.

12 There are 1502 units - 700 apartments of zero and one bedroom, and 802 units in duplex housing of two, three and four bedrooms.

13 There was no precedent to aid the housing authority in establishing a racial occupancy pattern at Marin City. As far as they knew there was only one Negro family living in Marin County.

14 Interview with Guy Ciocca.

pattern of the community. Therefore the pattern remained that way.

War workers who applied for housing at Marin City were accepted with "need" used as the only criterion. The workers were given dwelling units where there were vacancies. The Housing Authority would not transfer tenants who wanted to move because of racial reasons. Mr. Ciocca believes, "If you spread out minority groups and don't have them concentrated you will have less trouble." This statement is borne out by an incident related by Langdon Post,¹⁵ which occurred at Marin City. "In the community building one night, we had a few Texans who got themselves good and drunk, and wanted to go on a 'nigger hunt.' But they didn't know where they could go, because the Negroes were so scattered."

The Housing Authority evidently followed Mr. Clocca's theory of tenant placement. As the Negro population grew larger and could no longer be called a minority group, a few clusters of dwelling units became all-Negro or all-white. This was a result of "natural integration." Families have always been accepted on a "first-come, first-served" basis at Marin City. Whenever a vacancy occurs, a family is moved in regardless of color. Or, an applicant may ask to live near a family who are already tenants in the projects. If the Authority is able to place the applicant near this family it will do so. Therefore it is quite probable that over a period of time clusters of racial groups might develop.

15 Director, Region VI, FPHA.

The method of tenant placement at Marin City might be contrasted with the "checkerboard" pattern of occupancy. A strict interpretation of this policy would result in a Negro family being placed next to a white family throughout the project in a fashion similar to that of a checkerboard, i.e., two families of the same racial group would not be placed together; there must always be a family of one racial group living next to a family of another racial group. Mr. Ciocca believes that the checkerboard pattern is "ridiculous." He feels that in using this pattern people are forced to live together.

The ratio of white to Negro families in Marin City has always been approximately 60-40%. Several factors may account for this phenomenon.¹⁶ Until a few months ago, Marin City had a full occupancy, with families on a waiting list. Many of the original tenants are still living in the project. There is little industrial activity in the county and most of the residents commute to San Francisco. The lack of room in the public housing program and the lack of employment in the immediate area appear to account for the small amount of movement into the project. However, Mr. Bert Klahn, present Executive Director of the Housing Authority states, "It's only the white families that are moving because there's no place for a Negro to go. The Negroes haven't been able to open a crack in the real estate here."¹⁷

¹⁶ This stable ratio over the period of war and postwar years may be considered a phenomenon. Since the end of World War II the housing shortage in the Bay Area has eased up, but almost of the new private housing is available only to whites. Consequently, it is to be expected that the Negro population in public housing would tend to increase, especially in those projects which do not have a quota for this racial minority group.

¹⁷ Interview with Mr. Klahn.

Therefore, on the basis of the foregoing facts, an assumption can be made that the lack of employment in the immediate area plus the lack of private housing and small amount of available public housing have tended to discourage eligible Negro families from applying for the public housing in larger numbers.

The community feeling in the County about Marin City is a negative one. "Real estate companies keep up a running fire on the project's 'depressing' qualities. Minor troubles at Marin City receive disproportionate play in the county newspapers."¹⁸ The attitude of the people in nearby towns toward the Negro residents has forced them to obtain their recreation within the project unless they go to San Francisco or the East Bay cities.

There are no plans for future permanent low-rent housing in Marin County. In order to qualify for financial assistance from the Federal government for low-rent housing, the housing authority must demonstrate the need for low-rent housing by showing a count of the substandard housing within the city or county's limits, and the need for low-rent housing by residents of the community. A survey was taken in Marin County and it was discovered that, besides the temporary housing in Marin City, the only other substandard housing numbered seventy-five dwelling units. The local government would have to purchase the property in Marin City in order to clear the land for the slum clearance program and also show that the people living in this temporary

18 The Reporter, September 27, 1949, p. 21.

veterans housing¹⁹ cannot afford to pay the bottom rent asked for private housing. Since these two factors, among others, prevented the local government from declaring the housing and people at Marin City among their count of the need for low-rent housing, the seventy-five units were considered too small an amount to require low-rent public housing. Under the Housing Act of 1950, the County Board of Supervisors had the opportunity to buy the land on which Marin City is located.²⁰ This would have enabled the Supervisors to condemn the housing as substandard. The County then could have applied for Federal aid for either public low-rent housing or urban redevelopment.²¹ The Supervisors have not taken any action, to date. In the light of the community attitude toward the residents of Marin City, one would suspect that, among the reasons for not taking any action on the matter, was the fact that under Title I of the Housing Act of 1949 the community must supply adequate housing for those people who have been displaced by the slum clearance program.

There have been plans for the development of the Marin City area by private builders. The following article from a Marin

19 War housing and veterans housing do not have income limits as a requirement. Therefore, the residents can earn any amount of money and still live in this housing as long as they are war workers or veterans and are in need of housing.

20 Title VI, Housing Act of 1950.

21 Under the Housing Act of 1949, Federal aid was made available for slum clearance, for public low-rent housing or urban redevelopment. Under the urban redevelopment program, land is cleared and assembled for public or private housing construction.

County newspaper reports on a meeting of the Housing Authority in April, 1950, during which such a plan was broached.²²

Francis Newton, representing a housing committee of the Associated Chambers of Commerce, told the Housing Authority that 'the Associated Chambers had adopted a resolution recommending that the Housing Authority begin releasing vacancies so they can be torn down and replaced by private builders.' He declared that builders have planned about 5600 housing units for Marin County in the next three years. He said they would be at modest prices 'ranging from \$8,500 to \$12,000...' W.E..Cole, Commissioner, asked Newton, 'What are we going to do with our colored population here?' Newton said he couldn't answer that question. 'I've always had the theory,' he said, 'that when Marin City reaches its end, a majority of them will just move on.'

In view of the foregoing account, it can be assumed that the temporary housing in Marin City will remain until the housing shortage in that area ceases to exist or until the population of the project moves out.

The City of Oakland

The story of public housing in Oakland begins in 1938, when an organization called "Labor's Non-Partisan League" joined with other groups and began a fight for public housing in that city.²³ The efforts of these organizations were successful, for a local housing authority was subsequently established.

The Oakland Housing Authority did not announce a specific policy relating to a racial pattern of occupancy in the housing projects. However, organizations such as the Labor's

22 The article is taken from a scrapbook compiled by the Marin Housing Authority, which contains articles that refer to the housing program of that county.

23 Interview with C. L. Dellums.

Non-Partisan League, the National Association for the Advancement of Colored People, and the Elk's Lodge had been exerting pressure for an integrated occupancy pattern since the establishment of the housing authority. When Campbell Village, the first of the permanent low-rent projects planned for the city, opened in July, 1941, the occupancy pattern was scheduled to be a "checkerboard" pattern,²⁴ with a Negro-white ratio of approximately 50-50.

Just as there was pressure on the Oakland Housing Authority for an integrated occupancy pattern in the housing program, there was pressure on the part of other organized groups for segregation. Mr. C. L. Dellums, a member of the NAACP and Labor's Non-Partisan League, attributed a great deal of this pressure to real estate groups and particularly to apartment house owners "on the theory that if the government could prove that all people could live together, there would be less reason for them to have segregated apartments."²⁵ The pressure for segregation in the public housing program apparently influenced the members of the Oakland Housing Authority, for when Peralta Villa, the second permanent low-rent project, was opened the occupancy pattern was one of segregation by area.

It is interesting to note that Campbell Village and Peralta Villa, the two permanent low-rent projects which have a mixed racial occupancy, are located in West Oakland. At the time these two projects opened, West Oakland was inhabited by

24 cf. p. 76 for an explanation of a checkerboard pattern.

25 Interview with C. L. Dellums.

a mixture of racial groups.

Lockwood Gardens, the third permanent low-rent project in the program, was constructed in East Oakland, in a neighborhood that was predominantly white.²⁶ Heavy community pressure developed against the admission of Negroes into this project. Among the reasons advanced for such pressure was the fact that the project was built in an all-white neighborhood.²⁷ This pressure plus the commencement of war housing²⁸ resulted in Lockwood Gardens being opened as an all-white project.²⁹

From the nature of the occupancy patterns in the three permanent low-rent housing projects, it would appear that the Oakland Housing Authority was abiding by the "neighborhood pattern." This pattern is defined, by Edmund Horwinski, Executive Director of the Oakland Housing Authority, as the pattern which places as occupants in a project the same racial groups "as the groups that are living in a particular neighborhood at that time."³⁰ And that pattern is the basis for the housing program as it now exists, according to Mr. Horwinski.

26 There were no Negroes living on the blocks on which the project was built, and very few lived in the immediate vicinity of the project.

27 San Francisco Chronicle, August 5, 1943.

28 The main object of war housing was to get the housing built as quickly as possible. Prolonged discussion over this aspect of the permanent housing program would have detained the opening of this project for war workers and hindered the war housing program.

29 Mr. Dellums attributes the change in policy (to segregation), to a political change in the Housing Authority.

30 Interview with Edmund Horwinski.

Lockwood Gardens has been the center of a great deal of controversy since its opening. The groups that were fighting the policy of a segregated occupancy pattern in the project ceased their protests during the war years. However, after the war, these organizations began a new campaign based on several important facts. The neighborhood that was once predominantly white now consisted of mixed racial groups. A neighborhood organization consisting of Negro and white home owners which had joined the proponents of integration in this project pointed to the fact that there are diversified patterns of racial occupancy in the other two permanent projects and in the temporary war housing projects. The patterns in those projects include those of integration and bi-segregation.³¹ "Why then," they ask, "is this permanent project reserved exclusively for white families particularly when the surrounding neighborhood is of mixed racial occupancy?"

The pressure from these groups continued until 1949, when another complicating factor appeared upon the scene. Under the Housing Act of 1949, cities were able to obtain funds with which to build permanent low-rent housing units. In August of that year, the City Council of Oakland held a public hearing to consider a request of the Housing Authority to program 3,000 units for future construction. This meeting was notable for the propaganda which preceded it and which was aimed against the public housing program. At the meeting, representatives of the American Federation of Labor, the Congress of Industrial

³¹ The war housing projects were either segregated by arera, or segregated completely.

Organizations, the American Institute of Architects, the National Association for the Advancement of Colored People, and the Oakland Housing and Redevelopment Association were among those who spoke in favor of the program. Speaking in opposition to the program were representatives of the Oakland Real Estate Board and the Apartment House Association.³² The City Council approved by a 5-4 vote the reservation of 3,000 units with the condition that the units be built only on vacant land or on land owned by the City or Federal government. C. H. McCaslin, a representative of the Oakland Apartment House Association, immediately said "his group will circulate petitions for a referendum ballot repealing the City Council's action."³³ A few months later, on November 7, 1949, a recall movement against three of the Councilmen who had voted for the new housing program was initiated by the "Home Protection Committee." Adrian Thell, attorney for this group, stated that "the recall attempt will be made because the Councilmen voted in favor of a survey."³⁴ The Home Protection Committee is made up of real estate interests, apartment owners and others opposed to public housing.³⁵ Ten days after this initial move by the Home Protection Committee, affidavits were filed for the recall of

32 San Francisco Chronicle, August 30, 1949.

33 Ibid., September 16, 1941.

34 Surve3y in this statement means a survey for the 3,000 housing units.

35 San Francisco Chronicle, November 8, 1949.

Councilmen Scott Weakley, Raymond E. Pease and Joseph E. Smith. Action was not taken against the other two Councilmen (Douglas Sweeney and Frank Youell) who voted for the housing measure because they were not eligible for recall, having served on the City Council less than six months. The affidavits stated that the actions of those men, in voting for the housing measure, "arbitrarily disregarded public expressions of an overwhelming majority of Oakland citizens who voted in opposition to the principles of public housing on November 8, 1948, and who again expressed themselves in opposition...at a special meeting on August 29, 1949."³⁶

The League of Women Voters, the National Association for the Advancement of Colored People, the Oakland Council for Civic Unity, the California Planning and Housing Association, the Young Women's Christian Association and other organizations made an effort to counteract this move. However, a special election was held in February, 1950, in which two of the Councilmen won, and the third, Scott Weakley, lost.

The passage of State Proposition Ten, in November, 1950,³⁷ brought new action from the Committee for Home Protection. The Committee asked the City Council to "hold up construction of 2,000 public housing units until after the municipal election next May."

³⁶ Ibid., November 17, 1949.

³⁷ Proposition Ten requires a referendum on each proposed public housing project, in a community, i.e. whether or not the voters want public housing to be constructed in their community. This does not apply to projects already contracted for.

Contracts for Oakland's new units were signed last week (the week of November 6, 1950-ed.). Adrian Theil, Chairman of the Home Protection Committee said Proposition Ten was a "mandate to the elected representatives of the people to enforce elections even after contracts had been signed."³⁸

Theil's request to the City Council was actually made by letter, copies of which were sent to the four Councilmen who had voted for public housing. "He sent no letters to the five Councilmen who have opposed public housing in Oakland."³⁹ The Councilmen, named by the San Francisco Chronicle, who have opposed public housing are William Clausen, Mrs. Florence Fletcher, Fred Maggiora, Fred Morcum and Mayor Rishell.⁴⁰

By January, 1952, everyone on the City Council who had been favorable to public housing had been replaced, with the exception of Councilman Youell. There had also been vacancies in the Housing Authority since the 1951 elections. These vacancies had been filled by people appointed by the Mayor, who, the San Francisco Chronicle reports, is opposed to public housing and approved by the City Council, whose present membership is reported to be almost solidly against public housing.⁴¹

38 San Francisco Chronicle, November 14, 1950.

39 Loc. cit.

40 Loc. cit., Italics are author's.

41 An example of the result of such an attitude on the part of the Mayor and City Council is noted in a news item of May 7, 1952 (in the S.F. Chronicle) in which it is stated that "Mayor Risehll appointed D. W. Henderson as a member of the Oakland Housing Authority. Mr Henderson is a formed director and treasurer of the Downtown Property Owners Association, and former director and treasurer of the Downtown Realty Company." It should be noted that on previous pages (80, 83), it was shown that the real estate interests in Oakaalnd were the source of the greatest opposition to public housing.

Subsequent items in the news relate the story of public housing in this city up to the present. On January 21, 1952, Carl L. Scott, chairman of the Oakland Housing Authority resigned as a member of that board. "Scott threatened to resign earlier this month rather than become involved when a controversy developed between the Authority and the Mayor and Councilmen over a proposed eleven-story public housing project."⁴² On February 5, 1952, Councilman Howard Riles, "who was supported for election nine months ago by the Apartment House Owners League," introduced a resolution directing the City Attorney to prepare a resolution for presentation to the City Council providing for the cancellation of contracts for construction of low-rent units in Oakland. The resolution was adopted by a vote of 5-2.⁴³ A special meeting of the City Council was called in the beginning of April, 1952, by Councilman Florence Fletcher who "said she had asked for the...meeting to have the Council give its support to the majority members of the (Housing-ed.) Authority who recently voted, 3-2, to halt construction plans on the project."⁴⁴ On April 11, 1952, the Public Housing Administration "froze the \$50,000 balance of its \$275,000 loan to the Oakland Housing Authority for a low-rent housing project.... The crackdown was announced by J. G. Melville,⁴⁵ ...who referred to a 3-2 vote of the Authority last week against beginning construction on the

42 San Francisco Chronicle, January 22, 1952.

43 Ibid., February 6, 1952.

44 Ibid., April 12, 1952.

45 J. G. Melville is the Regional Director of the PHA.

long-planned...East Oakland project until another survey could be taken to determine if the need still existed. "It's just another delaying tactic," Melville said. "They had a \$7,000 survey in 1950 that showed 14,168 substandard units in Oakland. They don't need another one to show that 336 units (the number in the proposed project) are still needed."⁴⁶ However, all work on the new housing project has been discontinued and the progress of public housing in Oakland is at a standstill.

The fear of jeopardizing the housing program by emphasizing their particular stand had silenced the proponents of racial integration in public housing. In West Oakland, where the two mixed racial projects, Campbell Village and Peralta Villa, are located, there have been some changes. This area has, by now, a predominantly Negro population. Figures for 1945 show that, of the total non-white population of Oakland (37,922), 33,147 live in West Oakland. The white population in West Oakland increased approximately 50% during the period 1940-1945; the non-white population increased by approximately 280%. The 1950 estimate of the non-white population in West Oakland is 35,000.⁴⁷ In Campbell Village, the population is composed of 66% Negro families to 32% white families. In Peralta Villa, the composition is 55% Negro families to 44% white families. There are so many more applications from Negro families than from white families that

⁴⁶ San Francisco Chronicle, April 12, 1952.

⁴⁷ Figures obtained from the Public Housing Administration.

Mr. Butler, manager of both projects, is having difficulty in keeping the two projects from becoming all-Negro.⁴⁸ In Peralta Villa, where the occupancy pattern is one of segregation by area, the Housing Authority is now willing to change the occupancy pattern to one of integration. This concession on the part of the Housing Authority may be questioned, however, in view of the above facts and of the tales told by members of the Negro community about the practice of real estate agents of buying homes in West Oakland from white families under very attractive conditions and reselling them to Negro families. This process could eventually result in West Oakland becoming a solid "black belt." What then of the two integrated projects in this area?

The City of Richmond

The Richmond Housing Authority was organized in January, 1941, to develop and administer a low-rent housing program. Two projects were constructed as part of this program.

Richmond was the location of the Kaiser shipyards which, as noted in a previous chapter, employed 100,000 people. Ten thousand temporary units of housing were built by the Maritime Commission (after the low-rent program had been instituted). The Maritime Commission transferred these units to the Federal Public Housing Authority in 1944. Another 5,600 units were built by the Federal Works Administration and the Federal Public Housing Authority. All of these units were leased to the Richmond Housing

⁴⁸ These two projects are the only low-rent projects to which Negroes may apply.

Authority to operate.

The two permanent low-rent housing projects in Richmond, Nystrom Village and Triangle Court,⁴⁹ do not house non-white families. The temporary projects, originally built for war workers, housed non-whites, but the occupancy patterns in these projects were those of segregation by project, by area, or by buildings. Mr. Anderson, Administrative Assistant of the Richmond Housing Authority, states that the segregation policy developed because the management, during the early war days of the housing, felt that "the Negroes from the South would rather be by themselves and the whites they had coming were from Arkansas and the South and not so wholesome to Negroes."⁵⁰

The present policy of the Richmond Housing Authority, according to Mr. Anderson, is to put families "wherever there are available apartments without any respect to segregation."⁵¹ One of the reasons for this policy appears to be the fact that the Housing Authority is turning over the Canal Street Apartments of 1,248 units to the Redevelopment Agency on July 1, 1952, and the Authority must relocate the occupants of these units in other temporary housing.⁵² The Authority is having some difficulty in relocating these people, for most of these families have several

49 Triangle Court has 97 units, and Nystrom Vilage has 102.

50 Interview with Mr. Anderson.

51 Interview with Mr. Anderson.

52 Quarterly reports to the Regional Office as of 6/30/52 and 9/30/52 indicate that of the 11,416 units of temporary public housing, Negroes occupied 2,738 units.

children, and there aren't many two and three bedroom apartments available. Therefore this change in policy would seem to be a natural outcome of the foregoing facts.

The change in policy with regard to the occupancy pattern does not apply to the two permanent low-rent projects. These projects are still limited to white applicants.⁵³ The results of the practice of segregation in these low-rent units may be seen in a "shanty town" which has arisen in North Richmond. Many of the Negro families in this area are not veterans and therefore cannot qualify for the temporary public housing. A large number of these families could qualify for low-rent housing, if this housing were available to non-white in Richmond.⁵⁴ It is ironic that Mr. MacDonald, of the Leasing Department reports that the waiting list of applicants for the low-rent permanent housing is "not too large."

The Housing Authority is in the process of acquiring property for an additional 300 units of permanent low-rent housing. However, officials of the Housing Authority did not know what the racial occupancy pattern in these units would be.

53 Latest reports (since 9/30/52) to the Regional Office indicate an increase of non-white families in the permanent public housing (the previous amount of non-white families in the permanent projects were limited to one Oriental family in each project). The formal report, with the breakdown of "non-white" occupants into "Negroes" and "Orientals" will not be received until Dec. 30, 1952. Therefore, it is not yet known whether the increase of non-white occupants in the permanent housing includes Negroes, or is simply an increase in the number of Oriental occupants.

54 Field Report of the Public Housing Administration.

The City and County of San Francisco

The San Francisco Housing Authority was established in 1939 under the 1937 low-rent housing program. Of the eleven projects programmed at that time, five were constructed and six were deferred until after the war.

From its inception, the San Francisco Housing Authority has used the "neighborhood pattern"⁵⁵ to determine the racial occupancy patterns in the public housing projects. The neighborhood pattern is defined, by the San Francisco Housing Authority, as "that pattern which is racially acceptable to the community within the area."⁵⁶ When the eleven projects were planned, a city-wide survey was taken to determine, among other things, the racial occupancy patterns throughout the city.⁵⁷ The neighborhood pattern policy, as used in the five projects that were constructed as part of the low-rent program, resulted in five segregated projects, four limited to white families, and one limited almost wholly to Negro families.⁵⁸ Miss Alice Griffiths, member of the Housing Authority at that time, stated that "the factors governing that policy decision before the war were strikingly different from the situation today in San Francisco. The vote was based largely...on recommendations of the Authority's Negro Advisory Committee, whose members felt that a project

55 For a definition of "neighborhood pattern", see p. 58.

56 Interview with Ralph Dicker, SFHA.

57 Loc. cit.

58 Among These Rights, (May, 1950), p. 2.

in the Western Addition, where virtually all of the city's very small Negro population was then living, would serve the needs of that group better than either Potrero Terrace or Sunnydale, both being located far out and in neighborhoods which did not, at that time, have non-white residents." ⁵⁹

The war migration and subsequent settlement of many "new Californians" in San Francisco changed the population and the racial occupancy patterns in areas throughout the city. The San Francisco Housing Authority, however, did not change its policy. In 1946, the Board of Supervisors of San Francisco⁶⁰ adopted a resolution, "urging the Authority to establish a democratic practice 'in all public housing for veterans' and to establish a single non-segregated waiting list for...housing units."⁶¹ The Authority applied this policy to three temporary war housing projects which, by this date, were being used to house veterans and families of distressed servicemen. "This choice (of applying the policy to three projects-ed.), plus construction delays, continued segregation in all other projects, and a higher turnover rate in projects limited to whites, led to an involuntary predominance of non-white families in those three projects."⁶² Therefore, these projects became predominantly

59 Public letter to Mayor Robinson from Miss Alice Griffiths, January 26, 1950.

60 The Board of Supervisors determines the basic policies of the City and County of San Francisco.

61 Among These Rights. p. 2.

62 Loc. cit.

occupied by one racial group, and the occupancy pattern remained as it had been before the policy had been applied.

The Housing Act of 1949 re-awakened the issue of non-segregation in the public housing of San Francisco. The Board of Supervisors is required to approve "cooperation agreements" between the Authority and the City. In October, 1949, the Authority sought approval by the Board of Supervisors of a cooperation agreement for a 3,000 units housing program. Supervisor George Christopher introduced three non-segregation amendments to the cooperation agreement. The attitude of the Housing Authority to these amendments may be discerned from the following news item:⁶³

The Authority's reported view that non-segregation plus Supervisorial review of the project sites would 'kill public housing' reflects an unworthy opinion of both San Franciscans generally and of Supervisors, especially with regard to their attitudes toward the rights of 'minority' citizens.... The Authority is in fact making the double insinuation that most San Franciscans would, in practical situation, insist upon discrimination in housing, and that members of our Board of Supervisors would bow to such insistence.... It is shocking that four appointed commissioners of the Housing Authority...should flaunt the considered position of the Supervisors against racial segregation, even to the point of jeopardizing the new public housing program.... It appears that the fight will continue unless Mayor Robinson successfully prevails upon the housing commissioners to enlarge their perspective and get on with the new program.

On November 21, 1949, the Board of Supervisors adopted the housing resolution which was amended "to require nonsegregation in the new housing program," and "to urge gradual application of the same policy to all existing and war-deferred

63 San Francisco News, October 29, 1949.

dwellings under the Authority's administration."⁶⁴ The Housing Authority voted 4-1 not to sign the amended contract. The signed contract was supposed to be delivered to the Public Housing Administration by December 15 of that year, but the Housing Authority secured an extension of the date. On February 14, 1950, the following editorial appeared in the San Francisco News:⁶⁵

The three months old stalemate which is preventing San Francisco from getting the new public housing program moving must be broken without further delay. The public interest...requires that the Local Housing Commission and the Board of Supervisors resolve their differences over the racial occupancy policy for the new projects.... Special reason for speed is the fact that more public housing is required to permit the eleven slum-clearance programs of the Urban Redevelopment Agency to proceed. Public housing must be built to provide living quarters for many families who would be evicted from the razed slums.... Slum clearance is almost ready to start here, but it cannot move unless the new public housing units are built.... The majority of the commission appears determined to stick by its historic 'neighborhood pattern' policy, which in practice has resulted in varying degrees of segregation. The Commission is now waiting upon the results of a 'poll' on the question which it is taking among various San Francisco organizations. But regardless of this poll-and it is clearly an unscientific sampling which no one can be sure would accurately reflect public opinion-we can firmly believe that the principle of non-segregation enunciated by the Supervisors must be maintained in any definition of racial occupancy finally agreed upon. Under American constitutional standards and rules of fair play governmental agencies can't justify discrimination against any group of citizens whose public monies, provided by the citizenship as a whole, are being spent. The Housing Commission members raise the serious objection that a complete non-segregation policy would arouse neighborhood feelings to a point where no further housing could be built in San Francisco. They also argue that whites would boycott projects to which minorities were admitted, with the result that the projects might in time have all-minority occupants.... Let the

64 Among These Rights, p. 2. Italics are author's.

65 San Francisco News, February 14, 1950.

Commission re-examine the wisdom of the Supervisors' demand to have the final say on project sites-a provision which might artificially stir up dormant racial feelings.... Let them discuss and reframe, if necessary, the specific language defining racial occupancy policy without sacrificing the basic principle of non-segregation.

The afternoon of the day this editorial was published, the Board of Supervisors established a special committee to try to find a solution to the deadlock. A week later, the four housing commissioners who had opposed the cooperation agreement signed the contract. However, the non-segregation amendment to the contract does not apply to the six deferred low-rent projects then still to be built or to the existing temporary and permanent projects. Of the two deferred projects which have been constructed since the contract for the new program was signed, the occupancy pattern for the first project was based on the neighborhood pattern. Built in San Francisco's "Chinatown," the project was named Ping Yuen. There are Chinese characters on the facade of the buildings, and 100% percent of the residents are Chinese. The second project has not yet opened. It is almost finished, but information as to the occupancy pattern has been unobtainable. Since the only neighborhood survey of racial occupancy for these projects in San Francisco was the city-wide survey which was taken over ten years ago, when these projects were first planned as part of the 1937 program, the occupancy patterns of these projects are evidently based on data for neighborhoods that existed ten years ago, but do not necessarily exist today. If the existing permanent projects and the deferred projects still to be built continue to use the neighborhood pattern, segregation and non-segregation will exist in the future public housing in San Francisco. If consideration

is given to the eventual outcome of the use of non-segregation in only part of a public housing program, which was shown in the beginning of this chapter,⁶⁶ and to the outcome of the first experiment with non-segregation by the San Francisco Housing Authority in 1946, it can be assumed that these two methods of housing will not co-exist for a great length of time.

The City of Vallejo

The entire public housing program at Vallejo is made up of war housing. During the war, Vallejo housed workers from the Mare Island Navy Yard. At the present time this housing is used for immigrant veterans, servicemen's families, and civilian defense workers from the Mare Island Navy Yard, Benicia Arsenal and Travis Air Force Base.⁶⁷

There are five projects which make up the Vallejo housing program. Four of the projects have mixed occupancy and one has only white residents. Within the four projects of mixed

66 Section on Regional policy, fn. p. 68.

Note: Since the writing of this chapter, certain important events have occurred. The second deferred project, mentioned above, has been opened, and the occupancy pattern has been declared to include white families only. This decision on the racial occupancy pattern of the project, by the Housing Authority, has been challenged in a court case, by the National Association for the Advancement of Colored People. In a ruling, on Oct. 2, 1952, Superior Judge Melvyn I. Cronin said, "that the segregation alleged to have been undertaken by (the Authority) is unlawful discrimination in violation of the 14th Amendment to the Constitution of the United States, and the laws and general public policy of ...California and ...San Francisco..." The Housing Authority is now in the process of appealing the ruling. The Judge said he agreed with the N.J. ruling that "segregation of colored people in public housing projects is unlawful, discriminatory and in violation of the Constitution of the United States." (San Francisco Chronicle, Oct. 3, 1952.)

67 Interview with James Richardson, Executive Director of the Vallejo Housing Authority.

occupancy, there are mostly patterns of segregation by buildings or areas. However, there are one or two buildings which are completely integrated. "...outside of a few protests at first, apparently it has worked. Such a firm stand on the part of the Vallejo Housing Authority officials was the main thing that made it work."⁶⁸ This stand was apparently taken some time in 1945, when a two weeks course on race relations was given to the employees of the Housing Authority by the American Council on Race Relations. Afterwards a Staff Committee on Race Relations was formed.

The officials of the Vallejo Housing Authority seemingly have not attempted to change the occupancy pattern since that time, nor do they give any indication that they intend to do so in the future.⁶⁹ Vallejo has been designated as a "critical defense area." The temporary public housing under the administration of the Housing Authority will therefore continue to be used primarily for defense housing,⁷⁰ and will remain only as long as there is a need for such housing.

68 Termination Report of Residential Relations Advisor, VHA, August, 1947.

69 Interview with Mr. Richardson

70 As noted above, the housing is also used for veterans.

CHAPTER VII
CAL. 4479 (CODORNICES VILLAGE)

The seventh racial occupancy pattern in public housing to be regarded, and in particular to be examined, is that of Codornices Village. This federal war housing project was instituted after the housing programs in the six communities discussed in the preceding chapter had been established. The policies set forth in Chapters V and VI therefore set the rules and precedents from which the racial occupancy pattern of this federally-managed project was drawn.¹ The following account of the treatment of race relations at Codornices Village is, in part, a study of the use of these rules and precedents to make up a racial occupancy pattern. It is also the story of the development and results of the present racial occupancy policy administered in this project.

The Beginning of a Segregated Occupancy Pattern

From its inception in April, 1944 until January, 1947, Codornices Village had an occupancy pattern of segregation by buildings and by areas. This pattern originated as a consequence of the peculiar construction pattern of the project, and the

¹ Chapter V and VI contain statements of national, regional and local policy which are relevant to race relations.

referral policy of the Navy.²

Codornices Village was constructed in sections. The first section to be built up was the west side, the least desirable part of the Village. This area contains factories to which railroad switch tracks run.

The main line of the Southern Pacific runs along the western edge of the Village. The project is directly opposite the ocean. The city dump is about a half mile from the western edge of the Village and smoke from the burning dump is blown directly across the Village. Odors come with the smoke.³

The project buildings were erected around the factories and railroad tracks. Shopping and transportation facilities, the administration building and the community center are approximately three-quarters of a mile away from the western edge of the project.⁴

The apartments were filled as soon as they were completed. When one building was ready for occupancy, the housing manager would notify the commandant at Mare Island Navy Yard and buses would immediately leave the Yard, filled with families to be housed at Codornices.

The method of filling the available units at Codornices Village, stated in the preceding paragraph, was part of the referral procedure of the Navy. Workers in the shipyards who

2 Robert Conover and Mary Otani, "Race Relations at Codornices Village, Berkeley-Albany, California:", Housing and Home Finance Agency, Public Housing Administration. Region I. (Berkeley-Albany, December, 1947), p.4.

3 Narrative attached to Project Services Report, #1286, 11/1/46-4/30/47.

4 Conover, "Race Relations at Codornices Village, Berkeley-Albany, California", op. cit., p. 3.

needed housing applied to the Navy. The Navy then referred them to housing projects in the area. At that time, the Navy practiced a policy of racial segregation in housing, and wanted the management of Codornices Village to follow that policy.⁵ The stated policy of Codornices Village, since its inception, however, has been "interracial housing without segregation or discrimination,"⁶ and the management wished to maintain that policy.

Of the 800-900 families referred by the Naval authorities at Mare Island for the first group of apartment units, almost 90% were Negroes.⁷ Robert Conover, who wrote a report on this matter, attributes the large number of Negro families in this first group to the fact that, "Most of the original referrals for housing at Codornices...were an overflow from the more conveniently located projects near Mare Island. White families were given preference in those projects while Negroes were sent the approximate fifteen miles to Codornices Village."⁸ Langdon Post, however, states simply that, "the Navy decided to refer all Negroes to Codornices Village, which would result in segregation."⁹

The fact that Codornices Village was receiving almost all

5 Interview with Langdon Post, Regional Director of the FPHA at that time.

6 Conover, op. cit., preface.

7 Interview with J. Melville, housing manager at Codornices from April, 1944 to 1945.

8 Conover, op. cit., preface.

9 Interview with Langdon Post.

Negro referrals was discovered when a report of white and non-white occupants and applicants was made up for the Regional Office of the FPHA.¹⁰ Langdon Post, director of the office, went to see the Commandant of Mare Island about the matter, and a bitter controversy developed which, according to Mr. Post, was never resolved. However, after the visit of Mr. Post, the Naval authorities at Mare Island began to refer mixed groups to Codornices.¹¹

Sixteen hundred apartment units in Codornices Village had been allotted to the Mare Island Navy Yard. This allotment could not be completely filled,¹² therefore four hundred of the units were allocated to the Albany Naval Landing Force Equipment Department. In this block of apartments, called the "Navy Strip," the Depot placed 369 white families and 11 non-white families.¹³

Six months after the opening of Codornices Village, when the scheduled 1896 apartment units were completed and occupied, the racial pattern of the tenants was a "patchwork" occupancy pattern.¹⁴

10 This is a regular report (Fha-1224) which is prepared for the regional office.

11 Interview with J. Melville.

12 cf. Chapter IV, p. 36.

13 Interview with J. Melville,

14 Loc. cit.

Maintaining a Segregated Pattern

Once the original occupancy pattern was established at Codornices, other factors appeared which contributed to the maintenance of the segregated pattern. One such factor was revealed in the practices of the Leasing Department. Transfers from the undesirable west side of the project to more advantageous parts of the area were allowed white families but not Negro families.¹⁵ The result of this practice was that the section near San Pablo Avenue (about one-third of the area and containing eighty buildings) became all-white, and the section near the railroad tracks (the west side) containing eighty buildings became all-Negro.¹⁶ "By the summer of 1946, only eight white families remained in this factory area, while the area in the Navy strip and along San Pablo Avenue had no Negro occupants."¹⁷ The middle area of eighty buildings had an interracial occupancy pattern.¹⁸

A second result of the foregoing practices of the Leasing Department took the form of numerous rumors. Two such rumors which were told to the author by at least four different sources were the following:

As a concession to the city of Albany, the housing officials made an agreement not to have Negro tenants in the apartment buildings along San Pablo Avenue. As another

15 Conover, op. cit., p. 4.

16 Interview with D. Kinhead, Housing Manager of Codornices Village from August, 1946 to the present.

17 Conover, op. cit., p. 5.

18 Interview with Mr. Kinhead

concession to the same city, the management accepted an Albany resident to work in the Leasing Department, and it was this man who showed the partiality in transfers cited above.

Several of these sources were authoritative in that the parties were in positions (official) to know of such agreements. However, these agreements were apparently verbal, for the rumors have never been proven.

A second practice of the Leasing Department was to fill a vacancy left by a Negro tenant with another Negro family, and to place white families in those apartments which had been vacated by white tenants. In this way, the occupancy pattern remained unchanged.

The results of the foregoing practices were felt in many areas. In the administration of the project, "employees ... had a difficult time reconciling the policy of non-segregation with the actual leasing procedures which led to segregation."¹⁹ This put the employees in a poor position to explain regulations to the tenants. The tenants were confused. "Negroes usually discussed their problems with the Negro clerk." This practice cut across lines of responsibility in the office and resulted in unnecessary duplication of work....²⁰ The project services recreation program suffered too. Many tenant groups, such as the Boy Scouts, sewing circle and Teen-agers, were planned and instituted on an interracial basis. However, "recreational programs couldn't be integrated into the social pattern of Codornices...as long as they ran counter to the basic housing pattern. The groups either died out or became all-white or

19 Conover, op. cit., p. 10.

20 Loc. cit.

all-Negro."²¹

Revising the Occupancy Pattern

The appointment of David Kinhead as housing manager of Codornices Village, in August, 1946 marked the initiation of a change in the occupancy pattern of the project. Mr. Kinhead states the reason for beginning this change very simply: "Langdon Post had announced the (non-segregation-ed.) policy in a letter to the Vallejo Housing Authority, so I implemented the policy."²² The first change to be executed occurred in the procedure of the leasing department. All apartment buildings in the project were opened to families of all racial groups. By this move, a gradual change in the occupancy pattern could be accomplished.

Organization and Report of the Citizens Committee

Factors other than the appointment of Mr. Kinhead were working toward a non-segregated occupancy pattern in Codornices Village. During the summer of 1946, in response to pressure from tenant and civic groups,²³ Langdon Post requested that a citizens committee be created under the direction of the American Council on Race Relations, to find out and report on "the degree of deviation or conformity with the non-segregation and non-discrimination policy of the regional office of the FPHA."²⁴

²¹ Conover, op. cit., p. 10.

²² Interview with Mr. Kinhead. For the policy, cf. Chap. VI, pp. 68-69.

²³ Interview with Mrs. Kingman and Mr. and Mrs. Putman.

²⁴ Interview with Mrs. Kingman.

in Codornices Village. The committee was to be representative of the community, and the final membership was composed of: Mrs. R. Kingman, member of the American Council on Race Relations; Mrs. R. Nichols, South Berkeley Community Church, Community Welfare Commission; a representative of the Tenants Council of Codornices Village; Mrs. F. Homan, Housing Chairman of the League of Women Voters; a businessman from Albany; a representative from the AF of L and from the CIO; and Miss L. Cobb, member of the Recreation Commission of Berkeley.²⁵

The meetings of the Committee lasted from June to November, 1946.²⁶ At the first meeting, on June 24, 1946, a discussion of the quota system of determining eligibility took place. Among the facts brought out at this meeting was that Codornices has a 50-50 ratio of white to Negro families, and that the quota system might be used to discriminate against minority groups. On July 5, 1946, the problems of Codornices Village with respect to segregation and discrimination were reviewed. The two major problems with which the Committee was concerned were: (1) how to maintain a mixed occupancy without interfering with normal trends and demands, and (2) discrimination in the internal management of the project. To investigate these problems, two subcommittees were formed, one to recommend an over-all policy based upon the presence or absence of segregation, and the use of the quota system; the other to examine

25 Interview with Mrs. Kingman.

26 Information about the work and subsequent report of this committee was acquired from the Conover report, Mrs. Kingman and a confidential source.

the specific problems of management and administration in the project.

The two subcommittees held hearings in the Village. During that time, the members heard such people as Mr. Kinhead, manager of the project; Mr. Elmer Stevens, leasing and occupancy agent; Mr. John Doster, maintenance superintendent; Mr. Max Drucker and Mrs. Jacopo Buzaleck, project services advisers; Mrs. Doran, mother in parent-teachers group; Mrs. Hampton, president of the P.T.A. in Codornices; Mrs. Epstein, girl scout leader; Mr. Howell, head of the recreation department of Albany; and Mrs. Otani, office worker in the community building, formerly in charge of complaints. These people spoke about their activities in relation to the interracial character of the project.

The report of the Committee, based upon the above hearings, recognized that Codornices Village had a segregated occupancy pattern. The Committee felt that Codornices Village was constructed to fill a need for housing. Therefore, this housing should be provided, "where it is needed."²⁷ Accordingly, the Committee recommended that "the existing pattern of segregation in Codornices Village be broken,"²⁸ that, (1) instead of listing applicants in several categories, (one of which was racial), the management should maintain a master list, and consider the applicants on a "first-come, first-served" basis, and (2) there

27 Interview with Mrs. Kingman.

28 Confidential source.

should be no discrimination in the project.²⁹

Development of a Program to Eliminate Segregation

The recommendations of the Citizens Committee gave the administrative officials, in Codornices and in the regional offices of the FPHA, the community support and assurance they needed to initiate a program to eliminate segregation in the project.

While members of the Citizens Committee were holding hearings in the Village, Mr. Kinkead was introducing measures in the administration of the personnel policy which would better racial relations in the project. In hiring personnel, racial attitudes of the applicant were taken into consideration. During the interviews, some questions were asked of the applicant to ascertain his attitude toward racial minority groups. If the applicant showed himself to be prejudiced, he was not employed. Staff meetings, to be held each week, were initiated. These meetings provided an opportunity for the staff to discuss current problems, racial or otherwise, that had come to their attention. On October 25, 1946, Mr. Kinkead wrote a letter to the San Francisco regional office of the FPHA stating he would like to institute an in-service training course in race relations to be given under the auspices of the American Council on Race Relations for the employees at Codornices Village.³⁰

29 Interview with Mrs. Kingman.

30 It is interesting to note that the Citizens Committee had been apprised of the coming course during the hearings which they held in the Village, and that one of the recommendations notes that it was important that members of the staff have the right attitude, therefore the course should be conducted.

The regional office concurred on this move, and in January, 1947, a two weeks course was conducted for all personnel of the project, who attended the lectures on company time.

The in-service training course in race relations³¹ was given by the FPHA in cooperation with the American Council on Race Relations and the Berkeley Interracial Committee. Lecturers and persons participating in the discussions (other than the personnel) were the following: Langdon Post, Director, Region VI, FPHA; Walter Gordon, Chairman, California Adult Authority; Dr. R. Hewitt Sanford, Director, University of California Public Opinion Studies; L. Charlton, Area Superintendent, FPHA; Arthur Schroeder, Regional Training Supervisor, FPHA; Mrs. Paul Moyerman, Representative, Berkeley Interracial Committee; Lucienne Brown, Regional Director, American Council on Race Relations; Bernard Moss, Race Relations Advisor, FPHA; David Kinhead, Housing Manager, FPHA; and Seaton Manning, Executive Secretary, San Francisco Urban League. The course consisted of five sessions, each session lasting approximately one and a half hours. Two groups of sessions were conducted so that all the employees at Codornices Village could attend, without disrupting the administration of the project.

The principal purpose of the course was "to demonstrate ways in which a poor race relations policy can impair the efficiency of all project facilities."³² To accomplish this purpose and to give the employees a background in housing and race relations, the following topics were treated, first in a lecture and afterwards in a general discussion period: Session I - Why We Are

31 For details and content of this course, see Appendix I.

32 Conover, op. cit., p. 5.

Discussing Race Relations and Housing, and the American Creed - Mr. Howes; Housing Policy and Professional Training - Mr. Post; Session II - Who Are the People Who Live in Public Housing? - Economic, Social and Racial Characteristics of Public and War Housing - Mr. Charlton; Group Relations of Residents-Mr. Schroeder; Session III - Science, Race Culture and Prejudice - The Physical Aspects of Race - Mr. Hynes; Psychological Aspects of Race Prejudice - Dr. Sanford; Session IV - The Problem of Segregation-The Effects of Segregation - Mr. Gordon; Practical Management Aspects of Segregated Control, Semi-Control, No Control; Session V - What Can We Do About It? - Plans and Practice - Mr. Ross and Panel. Visual aids and posters were present at every meeting and literature relevant to the topics under discussion was distributed to the audience. An outline of the course, which includes the ideas emphasized in the lectures plus the questions asked by the participants during the discussion sessions, will be found in Appendix I.

Once the in-service training course in race relations had ended, the management concentrated its efforts on eliminating the segregation pattern in Codornices. The changes begun in the leasing department were again modified. A policy was adopted of placing white families in buildings which were predominantly occupied by Negro families and placing Negro families in "all-white" buildings. The racial pattern of each building was set out on a chart. To new applicants, the management explained the policy and told the applicants what they were trying to accomplish. The reaction of applicants to this new policy took several forms. A number of white families

canceled their applications, saying they couldn't possibly live in such a project."³³ Other white applicants accepted the apartments "with the hope that other white families would soon be moved in."³⁴ A third group of white applicants refused apartments, giving as their reasons the unattractiveness and inconvenience of the west side area. The applicants of people in this group were placed at the end of the file of applicants, to be reconsidered, in turn, after the present list of applicants had been taken into regard. ("This procedure allowed applicants another choice of apartments but not at the expense of others.")³⁵

The reaction of the project tenants to the change in policy was hardly noticeable. The housing manager received one petition, signed by members of fourteen families, asking that their block of buildings be allowed to remain all-white. No other petitions, letters or allegations of protest were received by the manager, the regional office or congressional representatives.

Opponents of the active promotion of a non-segregated housing pattern in Codornices Village questioned the application of this policy on the following grounds:³⁶ (1) "white tenants would move out or would constantly flood the office with transfer requests" - this has not occurred; (2) whites would constantly

33 Conover, op. cit., p. 6

34 Ibid., p. 6.

35 Ibid., p. 6.

36 These objections were taken from Mr. Conover's report. There are a few objections which are not treated here, but will be covered in later sections of this study.

complain against their Negro neighbors" - office records do not substantiate this claim. Harold Wise, an administrative official at the time, states that racial tensions seemed to disappear as the tenants, especially the women, discussed practical problems such as raising children, using the public facilities in the project, etc.³⁷ Roy Nichols, an organizer of the community church in the Village, states that there was a lot of door-to-door friendliness which resulted from "the normal necessities of neighborliness."³⁸ (3) "interracial conflict on the project would increase"-according to Mr. Conover, records in the office and in the local police department³⁹ do not bear out this statement.

The management of Codornices recognized that the run-down condition of the buildings and the inconvenience to shopping and transportation facilities of the west side of the project were detrimental factors to the new program. In a letter to the regional office of the FPHA, dated July 23, 1947, Mr. Kinkead writes:⁴⁰

At the present time, we have 25 buildings all-Negro, 18 buildings all-white and 194 (82%) interracial. We still have areas predominantly occupied by Negroes and areas occupied predominantly by whites. However, the picture is changing a little each month. In my estimation, the difficulty in getting white families to move into the predominantly Negro area is only partially based on objections because of race. Equally strong is the factor that that area is by far the

37 Interview with Harold Wise.

38 Interview with Roy Nichols.

39 Due to a complicated system of record-keeping, the author was unable to examine old police reports. She therefore assumes that Mr. Conover was able to do so since his report was written at the time these events were taking place.

40 Records of the regional office of the PHA.

worst part of the project. It is in a dirty industrial district with many noisy, smoky factories. It is far from transportation and shopping centers....

Accordingly, a plan was undertaken to make this area more attractive. Buildings were scheduled to be repaired and repainted; new lawns were planted; and the inter-city bus service was extended to the area.

It may be noted that in the above letter written six months after the non-segregation program started Mr. Kinkead states that 82% of the buildings were interracial in occupancy. Two months later 95% of the buildings had mixed occupancy, according to Mr. Conover. Several factors account for this rate of progress: (1) once a few white families moved into the west side area, others were inclined to do so, too; (2) the management made a special effort to evict illegal occupants, a majority of whom were found living in the west side area, so as to create more vacancies in this section. These vacancies were, for the most part, filled by white families. "Up to December, 1947, only four Negro families have moved in (to this area)."⁴¹ (3) the number of "move-outs"⁴² was, and still is, greater among the white families than the Negro families. Because Negroes were now able to transfer to any part of the project,⁴³ a number of families transferred to predominantly "white" areas, and in so doing created vacancies in "Negro" areas.

41 Conover, op. cit., p.8.

42 "Move-outs" us a term used for families moving out of the project to private housing facilities.

43 Tenants were only allowed to transfer for certain prescribed reasons, e.g. increase in family, health, etc.

(4) the population of the project was gradually changing. War workers were moving out of the project and were being replaced by veterans and their families. Many of these veterans were students at the University of California and other schools in the Bay Area, and had no families other than a spouse. These families required zero bedroom apartments. Many of the older residents, on the other hand, had increased their families and required larger apartments. Therefore, transfers within the project contributed to mixing the racial population. Mr. Conover cites an example of a predominantly Negro area in which the "infiltration" of white families was faster because most of the units are zero bedroom units. As Negro war workers move out of them, they are replaced principally by university couples.... as most of these students are white, the pattern of all-Negro occupancy is rapidly disappearing....⁴⁴

Another objection to the non-segregation policy, which was raised by its opponents was that, "the project would soon lose its white applicants and eventually would be all-Negro."⁴⁵ This did not happen. The waiting list of applicants continued to contain the names of both white and Negro families. However, other factors were present which, unless controlled, could have resulted in Codornices Village becoming a segregated project. These factors were (1) the demand for housing and (2) the amount of turnover within the project. The demand for housing, on the part of the Negro population, has always exceeded that of the

⁴⁴ Conover, op. cit., p.9.

⁴⁵ Ibid., p. 13.

white population. During the war years however, the demand for housing by both groups, as indicated by the number of applications received at Codornices Village, was fairly equal. In order to maintain a racial balance in the project, a quota system had been used which limited the non-whites to "60% of the total occupants."⁴⁶ At the time of the Citizens Committee hearings, in November, 1946, it was learned that the ratio of white to Negro residents was 50-50 and that there were an equal number of white and Negro families applying for housing. However, the turnover of white and Negro residents was about 10-1, i.e., one Negro family moved out of the project to ten white families. The question was then raised as to whether the quota system should be kept in use. Since the number of applications of white and Negro families was approximately the same, it would appear plausible to drop the quota system and take the applicants on a first-come, first-served basis. And this is what the Citizens Committee recommended. However, in order to eliminate the pattern of segregation in the project, it was necessary at first to maintain the quota system to insure a racial balance among the residents. (Mr. Conover reports that during the period of change, from a segregated to a non-segregated pattern, the ratio of Negro to white occupants was 53-47 (as compared with a 50-50 ratio in November, 1946)). The significance of the ratio in turnover should be considered in terms of the demand for housing. Evidently members of the white population were able to find private housing facilities at a faster rate than members

46 Confidential source.

of the Negro population. Although an equal number of applications for housing at Codornices had been received from members of both racial groups, the applications from white families could be expected to gradually lessen as the housing shortage lessened. The demand for public housing facilities would then be mainly from Negro families, and Codornices would eventually become an all-Negro or "segregated" project. To offset this eventuality, it was decided to maintain the quota system as long as apartments were full and there were white and Negro families on the waiting list.⁴⁷

Community Services

Community services is a broad term which, in this study, includes the activities of the tenants in Codornices, which help to make the Village a community and a part of the larger community; the part played by those members of the staff of Codornices who are concerned with these activities;⁴⁸ the actions of the cities in which Codornices Village is located that are directed toward the acceptance of the Village and its inhabitants as a part of the normal community.

Attitude of the Government

Information about community services in Codornices Village during the war is sparse.⁴⁹ However, the importance

47 Mr. Kinhead.

48 These members are called the Project Services Advisors.

49 The earliest information the author could obtain was that of the hearings of the Citizens Committee, and the report written by Mr. Conover. These items have already been referred to.

of these services may be realized by taking note of the attitude of the Federal government toward this aspect of public housing during the war and post-war years. As stated earlier, the social phase of the public housing program was considered an important instrument for keeping war workers and their families happy under abnormal environmental conditions.⁵⁰ Efforts were made to have the war housing environment approximate a normal community.⁵¹ Project service advisers and a staff were maintained in the housing projects to coordinate the activities of the tenants within the projects. The duties of these advisers were to work with the tenants and with community agencies in setting up programs for the welfare and recreation of the tenants. The staff provided administrative supervision of the programs. In Codornices Village, funds provided by the Lanham Act⁵² for this purpose were used to maintain a staff of six full-time workers.

The Lanham Act funds for "nursery schools, extended day care, and recreation leadership" were cancelled as of December 31, 1945.⁵³ This was in accordance with the policy

50 cf. Chapter VI, p. 70.

51 "It is the policy to provide space, facilities, equipment and personnel, outside the dwelling units, for a normal family life. Space and facilities include outdoor play areas, indoor recreation and social space, child care centers and school. Equipment includes stationary play equipment such as swings and slides, basic furnishings for community centers, child care centers and schools, and some expendable recreation equipment." Project Services Report # 1286, 11/1/46-4/30/47.

52 cf. Chapter I, p. 10.

53 PHA files and minutes of Berkeley City Council.

of the FPHA to discontinue all services which were not actually required to run the temporary war housing projects. At the time, it was thought that the war workers living in these temporary projects would return to their pre-war homes soon after the war ended, and that these projects could then be torn down. Therefore, all but the minimum services were curtailed in these projects. When Title V was added to the Lanham Act, making the temporary housing available to veterans and families of distressed servicemen, project services was not included as a part of this amendment. The Federal Public Housing Authority did not make provisions for a project service staff nor did its successor, the Public Housing Administration.

The attitude of the government had changed. The federal agencies were using these temporary projects again for an emergency. However, this time they were not interested in keeping people in the projects. Therefore they did not reinstate measures that would encourage people to remain.

Attitude of the Communities⁵⁴

The population of Codornices Village remained about eight thousand. The residents, told of the curtailment of funds for recreation and child care purposes, sent representatives to a Berkeley City Council meeting on January 9, 1946, to "request either assistance or advice in continuing the maintenance and operation of the recreation facilities at Codornices Village."

⁵⁴ Attitudes of the communities are ascertained from the Berkeley City Council minutes. cf. pp. 42-43.

Mr. Raymond stated that the Lanham Act funds...terminated on December 31, 1945...that without recreation plans he is fearful for juvenile safety and morale.... That Albany had indicated that city could help a little if Berkeley can give some financial contribution.... That the Lanham Act had provided per year \$10,000 and that three full-time employees and two part-time assistants had been hired...but with volunteer assistance drawn from the residents associations...they could get along on a much smaller amount...that a canvass of the people living at Codornices Village had been made and that 6,000 out of 8,000 had indicated they intended to remain living here.

In answer to this statement, Mayor Robertson stated:

The Council realizes the seriousness of the situation and is in sympathy with their needs; that it recognizes the need for recreation facilities at the project and the right of the residents to request aid, but he pointed out that the project and the residents were brought to Berkeley under a wartime emergency; that the project always has cost Berkeley taxpayers more in services than it has money provided by the Federal government; that if further money was appropriated it would mean that Berkeley taxpayers would be bearing expenses on additional recreational facilities after already paying city facilities.⁵⁵.... He did not know what the state could do but he felt it was the responsibility of the Government to continue with the maintenance of the recreation facilities at Codornices Village.

No further mention is made of the situation at Codornices Village until the Council meeting of August 7, 1946, when letters from

⁵⁵ Mayor Robertson apparently overlooked the fact that the residents of Codornices Vilalge who live on the Berkeley side of the project pay taxes too, as residents of Berkeley. The project service advisor reports in Report #1286, "Through a 'fluke' Albany doesn't always receive the automobile license tax rebate. This money goes to Berkeley as Villagers erroneously state they live in Berkeley when they actually reside on the Albany side of the Village." Report #1286, April 30, 1947. Also adding to the tax income of Berkeley is the fact that Codornices is located near the large downtown shopping center of Shattuck Square in Berkley. Albany does not have as large a shopping district with the variety of stores as in this area, nor are the Albany shopping districts nearby. Therefore, it can be assumed that all residents of Codornices do some shopping in Berkeley.

the Codornices School P.T.A., the Codornices Village Fellowship Church, and the Berkeley Chapter No. 2 of AVC were read "urging Berkeley to cooperate with Albany in providing a recreation program at Codornices Village."

The city manager was then asked if this matter had been considered at the same time the budget was prepared. City manager Van Der Ende (stated) ... this had been under discussion for some time, and that Albany has committed to contribute \$2,000 provided Berkeley will contribute \$3,400; that the FPHA will furnish the physical facilities, a block of space and the necessary janitorial service, provided the cities will conduct the recreation program; that he feels this is a reasonable arrangement and that it's included in the budget.

On September 11, 1946, the City Council of Berkeley passed a bill "authorizing an agreement with Albany for a supervised recreation program at Codornices Village.... The City Council of Albany agrees to employ the necessary personnel and conduct a recreation program for the period beginning 9/1/46 and ending 6/30/47.

The recreation program sponsored by the cities of Albany and Berkeley went into effect immediately. An advisory committee consisting of the Superintendents of the Berkeley and Albany Recreation Departments, the project service adviser of Codornices, and a resident from Berkeley and from Albany was set up "to assist in the coordination of programs and activities, to make known the needs of the residents and to interpret the program to all individuals and agencies concerned."⁵⁶

Project Services

Since the recreation program is a part of the community services within the project, or project services, it would be

56 PHA files.

best to look at portions of a project services report⁵⁷ which was prepared for the regional and central offices of the FPHA. This report appears to cover thoroughly the activities of the tenants during the period from November 1, 1946 to April 30, 1947. The role that is played by public and private agencies and by various groups of residents in stimulating these activities is covered in detail. The length of the report required that it be made into an appendix, and the body of the report will be found in Appendix II. Printed here is the summary of the report which contains the observations of the Project Services Advisor.

Summary

It is not possible to accurately estimate the use by Village residents of agencies which do not operate in the community facilities. It is not possible to accurately gauge the use of public and private recreational facilities by Village residents. We can say that the members of racial minority groups, particularly Negroes, do not make as much use of private recreational facilities as white residents do, as they are not permitted to do so. It is obvious from the large number of Negroes making use of the community facilities that they do not have access to private recreational facilities in the same degree that white residents do. It is known that practically all the eating houses, night clubs and poolrooms in Albany and along San Pablo Avenue do not accept colored patronage. Many establishments in Berkeley have the same attitude. Instances of discrimination against Negroes in certain activities in the Albany and Berkeley public schools have been reported. Joint participation of members of all racial groups in activities in this most enduring way of breaking down racial barriers. It is hoped and believed that this joint participation in the activities in the community facilities will bring understanding and cooperation between members of various races.

57 Part IV of Semi-Annual Project Services Report #1286. Narrative Report. Period from 11/1/46 to 4/30/47.

The goal that is expressed in the last sentence of this excerpt from the project services report is a part of the management policy at Codornices Village. Mr. Kinkead says,

"Management ignores the racial angle and emphasizes the objective-'let's get together and achieve things-regardless of race, color or creed.' Tenants will get together or else a tenant will come in with a problem and management suggests getting together in a group or an association."

Such was the case in the court organizations. Mr. and Mrs. Edison Putman, who were residents of one of the first courts to organize, state that in their court the tenants got together because of the lack of play equipment for the children. The tenants held a community court meeting to decide upon means of obtaining money, and then set about doing so. "In the process of getting money for the play equipment a lot of interracial antagonism between individual families was broken down." Once the play equipment was bought, it had to be put together and the ground landscaped around it. Here again the families cooperated, each one contributing to this community (court) cause. "In this court everything was done for the children," say the Putmans.⁵⁸ In this court, too, members of various races found they had a common problem, and worked together to solve it.

More evidence of the achievement of the goal is to be found in a report of a Memorial Day program held at Codornices Village in 1947. On that day, the dedication of a "newly turfed softball field and playground" took place. "The...program was attended by between 2500 and 3000 residents of the cities of Berkeley and Albany."⁵⁹ On June 3, 1947, Mr. Edwin S. Howell,

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59

Superintendent of the Recreation Department of Albany sent a letter to the management of Codornices in which he said the following:

We have received many fine compliments on this program from the citizens of Albany as well as Berkeley, and the public officials were high in praise of this program as a means of better understanding and closer community relationship between the residents of Berkeley and Albany⁶⁰...This program culminated beyond the question of a doubt that one of the best means to bring the residents of the Village and the community together is through a well-organized recreational program; we are confident that... the recreation program... will go a long way to settle many of our interracial problems and will create a better understanding of all concerned.⁶¹

The cities of Berkeley and Albany continue to finance the recreation program at Codornices Village. However, many of the activities reported in 1947 have been discontinued. One of the main reasons for the dissolution of the clubs, activities and court organizations has been the lack of volunteer leaders. This is due to several factors. The population of Village has changed. During the war, the residents of the Village were strangers to the community. However, they all had a common purpose in being there. Now, Village residents are no longer strangers in the community. They know where to get recreation outside the Village. The turnover in Codornices

60 Public officials present at the Memorial Day program were the following: Mr. Kirkpatrick, Regional Project Service Supervisor for FPHA; Mrs. D. Watson, Pres. Albany Bd. Of Ed.; Mr Clark, Pres. Berkeley Recreation Commission; Councilman Frank Graeber, representing May L. William of Albany; Mr Frank Irwain, Pres. Codornices Tenants Assoc.; Mr Charles Davis, Supt. Recreation Dept. of Berkeley; Mr Carl McWilliams, vice-president, Albany Park and Recreation Commission; Mr Edwin Howell, Supt. Recreation Dept. of Albany; Mr D. Kinkead, manager of Codornices, and Mr John Melville, representing Langdon Post, regional director of FPHA; Mr Tom Caldecott, member Alameda Bd. of Supervisors; and Mayor Cross of Berkeley.

61 In PHA files.

is high, too. Many families and individuals who were interested in the activities in Codornices have moved away. Many remaining leaders have given a great deal of time and are now tired out. The paid recreation leaders are trying to take care of as many activities as possible. However, the era of the great variety of clubs and activities, with the factors of numbers and variety virtually assuring a good degree of integration seems to have passed.

Later Community Attitudes

The minutes of the Berkeley City Council meetings contain very little mention of Codornices Village until the meeting of March 2, 1949. At that meeting, a letter was read from the Codornices Village Council "with reference to the disposition of Codornices Village and asking that a meeting be set with the Council to hear their request that the city ask the government to allow this housing to remain after June 30, 1949."

Councilman Mork stated that this was a good and sensible request; that the housing situation in Berkeley is serious; that if this housing is disposed of, the people living there will be thrown out on the streets.

In response to a question for more information on the subject, city attorney Hutchinson stated the following:

...as temporary housing it must be moved on or before June 30, 1949 unless the city in which it is located makes a request to the Federal government that it remain.... There is nothing more permanent than temporary housing; that if this request were granted, provisions would have to be made to improve the housing...; that it would conform with the state housing act and with the building code of the city...; that if Codornices...were allowed to remain, the responsibility of taking care of it would be transferred to the city by the government.

The matter was placed on the agenda for the following week. At the meeting of March 9, 1949, a statement by the Codornices Village Council was read. The Codornices Village Council "requested that the City Council either ask the FPHA to continue the operation of Codornices...after July 25, 1949 or that a committee be appointed by Mayor Cross to meet with the Housing Committee appointed by the Mayor of Albany to study the housing situation."

City Manager Miller stated...that the city of Berkeley may ask for an extension of the use of the buildings for another year and the request may be made each year after that until the housing shortage no longer exists. He further stated that yesterday, a meeting was held in the Chamber of Commerce offices in order to determine the attitude of various business interests toward the continuance of Codornices; that at this meeting there were representatives of the Chamber of Commerce, the Berkeley Manufacturers' Association, the Berkeley Realty Board, and the Associated Home Builders of Alameda County. The Chamber, Berkeley Manufacturers' Association, the Berkeley Realty Board, and the Associated Home Builders of Alameda County...suggested that the city council take no action at the present time.

It was agreed to appoint a committee which would meet with the Albany committee to study the housing situation, and then report on the situation to the City Council. The report of the committee was presented at the Council meeting of July 6, 1949. A letter from John Ratcliff, chairman of the committee presented the following recommendations:

1. that the City Council request the Administrator...to continue Codornices Village for one year from July 25, 1949 to July 25, 1950.
2. that the City Council appoint a permanent committee to study the need for the Village after July 25, 1950 and also study the possibility of progressive removal of the housing after July 25, 1950.
3. that the ...Council notify the owners of the real property in Codornices...of the recommendations of this committee...

The letter also contained reports on the housing situation by various people. Among these reports was a list of "Housing Figures of Codornices Village as of June 6, 1949," which had been prepared by Mr. Kinkead, manager of the project. This report revealed that applications for the project ran between 125-150 per month; that the average number of vacancies per month was approximately 40; that there are about 500-600 families on the waiting list at the present time.

Mr. Ratcliff was present at this meeting and defended the second recommendation of the committee with the following reasons:

Mr. Ratcliff stated he realizes there is a tremendous need for housing but feels that the City Council should consider the owner of the property on which Codornices Village is built; that the site is property owned by some fifty-two private individuals; that these people were not consulted at the Government's taking of the property; it was just taken from them; that they have some rights; that no final action should be taken to return any use of this property to the property owners....⁶²

A hearing on the report of the Housing Committee was set for the following week in order to give the council members time to study the report. On July 13, 1949, the Council members expressed their views on the report of the housing committee. Councilman Harris felt that "the taking of applications...in Codornices...should be stopped at a certain point...; that if this is not done, it will be several years before the housing is torn down." Councilman Whitaker felt that the housing officials "should renegotiate the payments to the

⁶² For facts which relate to this statement, see p. 35, top and bottom.

owners of the property on a higher basis...." Councilman Martin stated that "...in Washington, D.C. there is temporary housing that was put in during World War I and is still in use; that Berkeley doesn't want a repetition of that situation in this city." The Council passed a resolution to establish a housing committee to study the problem of Codornices Village, and to recommend that the committee consider "the progressive evacuation of this project, and increased rentals by the Federal government to the property owners."

On November 9, 1949, a letter was read from the Berkeley Municipal League regarding the National Housing Act of 1949. The League "recommended that an official housing study be made for Berkeley to determine the need for a local redevelopment agency and a public housing agency."

In answer to this communication, city manager Miller stated that "...in 1950, the census will be taken and part of the census will be devoted to housing information;...that the planning department is working on a master plan for Berkeley which will include a study of the housing situation."

The League of Women Voters presented a request "that a survey of the housing situation be made as soon as possible in order to take advantage of the 1949 Housing Act."

Mrs. Heyneman addressed the Council urging that some action be taken as soon as possible; that other cities in the state have already made their requests for aid under this act and the League...feels that Berkeley should be able to make such a request if low-cost housing is needed; that the only way this need can be determined is by having a survey made.

On February 14, 1950, a communication was read from Harold Morrison, president of the City Planning Commission,

"presenting a report from the commission urging that a housing survey be made as soon as possible." At this same meeting, a letter was read from Harold Smith of the Berkeley Realty Board requesting permission to present material they have collected on housing problems in Berkeley to the Council.

A public meeting was held on February 28, 1950 to discuss the recommendation of the City Planning Commission for a survey to obtain housing data on Berkeley. The factors that led to this recommendation by the City Planning Commission were the following: The City Council had asked the Planning Commission to report on the number of substandard units in Berkeley. Data on "the number of low-income families, the number and type of dwelling units, the age and condition of the dwelling units, the number of people per room and the number of families per unit, and the rents charged per unit were to be obtained to answer the question-Does Berkeley have a substantial number of families not being provided by private enterprise with adequate housing they can afford to pay?" The Planning Commission was to make recommendations as to whether the city should take advantage of the Slum Clearance and Urban Redevelopment Program and the Low-rent Housing Program of the 1949 Housing Act. Those recommendations were to be based on the figures in the report. In a preliminary report to the Council, the Planning Commission stated they could not give accurate information on the number of substandard dwelling units in Berkeley unless they had more recent information; that most of the available data was from the 1940 census, and was therefore obsolete. They recommended that a survey be made, and

asked for the money to do so.

At the meeting of February 28th, Mr. Morrison, president of the Planning Commission, presented the stand of the Commission on this matter.

...it is the recommendation of the Commission that the Council allocate \$3,000 for a survey to be made to determine whether there is substandard housing in Berkeley and if public housing is needed; that the question tonight is not if the Council is for or against public housing but if they feel a survey should be made to determine whether public housing might be needed; that the Commission had been requested by the Council to ascertain this need; that the Commission after examining the available data found they could come to no conclusion as so much of the data was obsolete and based on the 1940 census; that they made this recommendation...in order to be in a position to be able to answer the request of the Council; that this information will be forthcoming in 1952 from the census...but the Commission felt the survey should be made now if the Council wished to take advantage of the 1949 Housing Act;...that the census figures...would not be available for two and a half years.

Councilman Harris, restating the matter, said:

...according to the recommendation of the Planning Commission the survey is for the purpose of not to settle at this meeting the problem of public housing but just what the housing needs are in the city and what the redevelopment needs are whether they be public or private.

Mr. Morrison answered him and stated:

...this would be a report on low rent housing and development; that they are asking for this survey in order that the Commission may make a complete and fair study of the housing situation in Berkeley based on facts and not whether the city should take advantage of public housing at this time; that if the survey showed there was a lack of housing...then the matter would have to be decided by the Council at a later date; that at their meeting they were surprised at the pressure from organizations and individuals for and against public housing....

Councilman Beckley asked "if the urgency of the matter tonight is, does the Council wish to take advantage of public housing?"

Mr. Morrison replied, "That is practically the issue in that the public housing funds are being rapidly used and there might not be any left if the survey shows public housing is needed."

Groups speaking for the survey were: the Berkeley Planning and Housing Association, the Alameda County Rent Advisory Board (the representative of this Board made a report on sub-standard living conditions in Berkeley), the East Bay Independent Socialist League, the Berkeley Young Democrats Club, the University chapter of the Students for Democratic Action, the Alameda County chapter of the NAACP, the 10th Assembly District Democratic Club, the Berkeley Municipal League, the Codornices Village Housing Council, the Berkeley Community YWCA, and the League of Women Voters. Mrs. Heyneman of the League made the following statement:

There are 3700 substandard dwelling units in Berkeley, which means that 11% of the children in the city are living in conditions detrimental to health and safety;...that between 1940-1948, there were only 3,454 dwelling units built although the population increased from 85,000 to 110,000⁶³.... The League believes a survey should be made now for the following reasons: 1-If facts shown by the preliminary survey were substantially accurate, something should be done about it and not wait until the situation becomes a real crisis. 2-If facts from the survey show that the problem is not a pressing one, facts could be used for promulgating a master plan...such as recreation plans, redevelopment plans.... 3-If the survey showed that the city needed more middle income housing there are many other plans that could be employed, such as the Rochester Plan, the Baltimore Plan....

A representative from the Alameda County Democratic Council said:

⁶³ This information was in the preliminary report of the Planning Commission. The figures were based on the 1940 census figures.

They feel the survey should be made; that it might show that Berkeley does not have a housing problem and may show that all of Berkeley's housing needs are supplied by private enterprise without government aid; that such information would be of great value to real estate agents and builders in the city; that the survey might show there is a need for housing which private enterprise could not economically supply.

Groups speaking in opposition to the survey were: the Berkeley Realty Board, the Home Builders Association of the Greater East Bay, the Alameda County Rent Advisory Board, the Berkeley Home and Property Owners Association, the Alameda County Apartment House Association, the Chamber of Commerce and the Home Protection Committee of Oakland. A spokesman for the Berkeley Realty Board said:

There are no slum areas in Berkeley and only a few isolated cases of substandard units;⁶⁴ that because of the war years everyone realized that Berkeley has more families than can be housed; that they feel it would be foolish to hire someone from the outside to tell the citizens that private housing is developing rapidly and it is much better to have people live in their own houses or in apartments than in public housing developments; that if Federal housing were put in, property would be taken off the tax rolls and already 17% of the property in Berkeley is tax exempt; that public housing will throw a heavy load of taxes on the already overburdened small property owners; that they feel the situation is changing so rapidly that if the city undertook a six months housing survey it would be obsolete by the time it was completed; that in a year they feel the city will be in a balanced tenants market; that with the increase of new living units people will not live in substandard units;⁶⁵ that they feel the city should take positive action to eliminate whatever substandard units now exist... They recommended...that the city use the \$3,000 plus more to hire

64 Compare this statement with the statement and figures given by Mrs. Heyneman on the preceding page.

65 The spokesman evidently assumes that people now living in substandard housing will be able to afford the rentals to be charged for newly available living units.

...a full time housing inspector, for the purpose of investigating substandard housing units, and where they are located, to see that they are eliminated....

The representative for the Home Builders Association of the Greater East Bay stated:

They feel this is definitely a form of socialized housing; that this would be Federal housing and the city would have no control over it;⁶⁶ that there always has been and always will be some substandard housing; that other cities in this area will have to serve as the bedrooms for Berkeley.⁶⁷

A member of the Alameda County Rent Advisory Board, speaking for himself stated:

Because of rent control the government has already taken housing out of the hands of the taxpayer; that is, the landlord or property owner; and has put it in the hands of the tenants; that substandard units were developed because the landlord has had to take care of his property on a 1941-1942 income basis from the property; that there are many people living in low-cost housing units who are making in excess of \$6,000 a year.

A representative from the Berkeley Home and Property Owners Association stated:

He feels the people are confused in not supporting substandard housing and the city is derelict in not seeing that it is corrected; that under Section 17021 and 17035 of the state housing act, the city is definitely charged with the responsibility of eradicating any substandard, unsanitary housing in the city....

The representative of the Alameda County Apartment House Association stated:

66 For the powers of the local housing authority and the controls which the Federal and city government exercise over this body, cf. Chapter I, pp. 7, 8.

67 For explanation of this phase, cf. Chapter IV, p. 39, fn 9.

He feels public housing is detrimental for the following reasons: 1-it breaks down the incentive of the individual to better himself; 2-for every three units of public housing it destroys an opportunity for an individual to engage in business; 3-it destroys the incentive for those who engage in the housing industry;⁶⁸ 4-it destroys tittle insurance companies... real estate business and the insurance business; 6-it creates unemployment not only in the aforementioned businesses by also in the county court house and city hall...the Tax Collector's office, the Assessor's office and the Treasurer's office; 7-even the newspapers would lose business because of lack of advertising.

A discussion among the councilmen was held after these speeches were given. Councilman Martin was one of the first to speak. He presented the following opinion:

He is puzzled as to who real reason why the survey should be made; that he feels the recommendation should be returned back to the commission for clarification and amplification; that the council should know just how the commission feels about low cost public housing and they should have this information before appropriating the money for a housing survey.

Councilman Whitaker stated that "the commission made a survey and found they could not state whether or not the city needed public housing without obtaining more complete information; that she feels the city should prove whether or not it needed low cost housing."

Mayor Cross said that "this vote would not be a vote for public against private housing; that his vote was for knowledge against lack of knowledge." Councilman Beckley stated that he "would like to establish what the facts are the planning commission is talking about,⁶⁹ and what value they are; that...the report

68 Public housing, other than war housing, is low-cost housing. It is built for that segment of the population that cannot afford to pay the price of private housing, i.e. public housing builds for a different market than does private housing.

69 Councilman Beckley apparently had not read the report of the Commission.

should be delayed until after it's determined whether or not rent control will come off after June 30, 1950."

Councilman Purcell said "he wondered if the Planning Commission realized that public housing knows no zoning barriers."

Mr. Morrison replied that "...public housing would have to go where there were available locations; that the Commission made a tour about a week ago and found five different places that would take care of housing projects, private or public."

Councilman Harris then made the following statement:

He feels the problem becomes the Council is whether it should or should not accept the report of the Planning Commission about obtaining a survey...; it seems to him that their report and request is quite clear; that the Council would not be in a position to know whether public housing is needed or some other plan would be developed unless it had more complete information.

Councilman Martin interrupted by asking Councilman Harris what he thought of laying the matter on the table pending an advisory vote from the people of the city to ascertain whether they were in favor of public housing; that he doesn't feel the people in the city wish public housing.

Councilman Harris replied:

He feels there seems to be an honest difference of opinion as to whether or not there should be a survey and as to what this survey is for; that he does not feel this survey is being made in support of public housing but is merely a survey to ascertain whether or not Berkeley needs public housing; that after it had been determined...that Berkeley needed public housing then the matter should be placed before the people....

A tie vote was cast on the motion (to return the request for funds for a survey back to the planning commission for further consideration), and a decision on the matter was delayed until the following week.

At the meeting of March 7, 1950, Councilman Martin stood up, took a paper from his pocket, and began reading from it.

At the last meeting...he seconded the motion and voted for it; that he did so because at that particular time based on information made prior to that time by members of the Council, the members individually and collectively were opposed to public housing in Berkeley...; that in view of the vote on the motion, it appears to him that his belief in regard to the position of certain members of the Council is not correct. He states therefore that instead of making a motion to reconsider the proposition as it was before the Council at the last meeting, he would like to present the following resolution:

...Resolved that the Council hereby disapproves the Planning Commission's recommendation that funds be appropriated to conduct a housing survey. For the reason that the results of such a survey would be useful only for the purpose of securing low rent public housing for Berkeley; and

...the Council hereby relieves the Planning Commission from further consideration of said question of a housing survey on the grounds that the Council, as of this time, does not favor public housing for the city of Berkeley.*

Councilman Parce seconded the motion stating that although he had not been at the last meeting he had read minutes and newspaper accounts of the meeting and...had attended a meeting held by the Chamber of Commerce...at which the pros and cons of public housing were discussed.

Councilman Whitaker stated she "resented being maneuvered into a public housing issue..." and that the tie vote was on the survey; that she still feels the Council should vote on whether there should or should not be a survey.

Councilman Martin replied:

Mr. Morrison ...admitted at the last meeting that the purpose of the survey was to take advantage of available funds under the National Housing Act; that when the city manager was asked

if he needed such a survey for administrative purposes, his answer was "no."

Councilman Whitaker answered Councilman Martin by stating:

Councilman Martin was the representative of the Council on the Planning Commission; that at no time had he reported to the Council that this survey was only for public housing; that the Planning Commission does not state it is for public housing but in order to have the facts before the citizens of Berkeley they needed the survey to complete a request made by the Council.

Councilman Beckley stated he "feels there could be no question that Mr. Morrison stated this survey was aimed solely at public housing."

Councilman Pettiit replied:

His understanding of Mr. Morrison's answer was not that this survey was aimed solely at public housing but it was brought up at this time due to the pressure for public housing; that Mr. Morrison did not say there was no other use for this survey; that the reason they had been moved to recommend the survey at this time was because there is a time limit on the availability of funds for public housing.

The motion, proposed by Councilman Martin, passed.

The Federal government notified the city council, in a letter read at the meeting of July 5, 1950, that "under the Housing Act of 1950, the schedule for the disposition of Codornices Village is not up; that the city may take over the operation if it desires;...that the Council must decide by December 31, 1950 if it will take over the Village." The matter was placed on the agenda for the following week.

At the meeting of July 11, 1950, the City Council voted not to acquire Codornices Village. Councilman Harris voiced the general opinion of the Council when he stated his opinion on the matter. Mr. Harris said the following:

He is inclined to vote against the city taking over Codornices...; that if the city in the future wished to go into low-cost housing he wonders if it would be wise to start with the Codornices project because the structures are substandard and the buildings would have to be demolished if the city were to put up permanent low-cost housing; that because the Council would like to have Codornices Village continued if it was determined that there is an acute housing shortage; that he would like to see a committee look into the problem of Codornices Village.

Mayor Cross also stated that he:

feels the welfare of the people in Codornices Village is of concern to Berkeley; that he is not in favor of doing nothing about public housing; that the Council by a majority vote showed that it was not in favor of even studying the need for public housing; that he is in favor of maintaining Codornices...as long as it is needed.

The Mayor was authorized to appoint a citizens committee of seven to study the housing problem at Codornices....

The City Council asked the Federal government to extend the life of Codornices Village for one year. Accordingly, one year later, the problem of the closing and eventual demolition of Codornices Village again came before the Council. On August 7, 1951, a letter from the Codornices Tenants Committee in regard to this matter was read at the Council meeting. City manager Phillips supplied the following information:

According to information obtained from the office of John Melville,⁷⁰ about a week ago, August 25, 1951 is the last date on which new tenants may be accepted at Codornices Village; that March 31, 1952 is the date on which tenants will be notified to vacate the premises on or before July 1, 1952; and as of July 1, 1952, eviction notices are to commence... These dates do not apply to the entire Village...that the Albany units will remain open....⁷¹

70 Regional Director of the Public Housing Administration.

Mrs. Pat Putman, a resident of Codornices Village then spoke from the floor. Mrs. Putman "stated that the City Council lifted the rent controls in Berkeley on July 31, 1951, at approximately the same time it was learned that on August 25, 1951, the Public Housing Administration would accept no new tenants."

Councilman Martin then made the following statement:

At the present time, due to the recent control act passed by Congress,⁷² the Federal government has the right to impose controls over even large places that have been decontrolled, if considered critical defense areas, and if there is a shortage of housing;...that in view of the recent decontrol action in Berkeley,...if the Village is left open, there is less likelihood of the Federal government stepping in and saying that this is a critical area and then reimposing controls in Berkeley.

A resolution was then passed by the Council, "to ask the Federal government to extend the life of the portion of Codornices Village located in Berkeley to July 1, 1953 and to extend the date of acceptance of new tenants to August 15, 1952."

Since that time, a Presidential Order, signed April 8, 1952, extended the life of unexhausted war housing projects, such as the Village, for another year. New tenants may be admitted in the projects

71 A provision of the Housing Act, (Section 604) makes it possible for the portion of the project which is located in Albany to remain open.

72 The "Control Act" is actually two parts which were passed in 1951, called the Defense Housing and Community Facilities and Services Act (which recognizes and designates certain areas as critical defense housing areas) and the Defense Production Act Amendments of 1951 (which is designed "to prevent excessive increases in rents resulting from housing shortages caused by expanding defense activities"). Both Acts use the same general criteria for determining defense housing areas. The Defense Production Act Amendments provide that the Federal Government "may under certain conditions impose rent controls on housing in critical defense areas."

until December 31, 1953, and vacate notices will not be served to the tenants until March 31, 1954.

It may be assumed, from the attitudes shown by the City Council in 1952, that the Council will continue to ask for a yearly extension of the life of Codornices Village; that is, until it is satisfactorily shown that there is no longer a housing shortage or at least until the Defense Production Act Amendments of 1951 (P.L. 96), with its threat of imposing rent controls in critical defense housing areas, is no longer law.

The Results of the Non-Segregation Program - Five Years Later

Codornices Village is no longer a fully-integrated project. Through a combination of circumstances, some direct, others indirect, the Village is again becoming a segregated project. The direct causes of this change may be traced to the following factors:

1. Increasing expansion of private housing facilities for the low and middle-income white families in the Bay Area.
2. Lack of private housing facilities for Negro families of all incomes in the Bay Area.⁷³

These two factors reduced the need of white families for public housing facilities and increased the need of Negro families for these same facilities.

The indirect causes of the change in the occupancy pattern of Codornices Village may be found in the fact that most of the housing authorities in the Bay Area follow a policy of segregation which

⁷³ The following number of residential building permits were issued for the SF Metropolitan Area: 1949 - 20,581; 1950 - 30,663; 1951 - 24,372. (U.S. Bur. Labor Statistics). During these years, approximately 600 units of housing were available for Negroes. (PHA records).

limits Negroes to certain projects, areas or buildings.⁷⁴ Therefore, these housing authorities accept only a limited number of qualified Negro families in their housing projects.⁷⁵ Other eligible Negro families must wait for the limited supply of public housing in the segregated projects to become available. It is to be expected that these families would turn to a project, in the same local area, that does not practice such controls.

Included in the group of Negroes who seek public housing are upper and middle-income families. The incomes of these families are too high to allow them to qualify for low-rent public housing. However, under Title V of the Lanham Act,⁷⁶ veterans with families are eligible for temporary public housing. This housing does not have income limits.

The lack of private housing facilities has sent these upper and middle-income Negro families to look for temporary public housing.⁷⁷ The segregation practiced in most of the Bay Area communities compels these families to look for temporary public housing projects without such controls. Codornices Village meets these requirements. For these reasons, the applications of Negro families for housing in Codornices Village began to greatly exceed those of white families. As a result of these circumstances, Codornices

74 The only housing authority in the Bay Area (of those covered in this study) that does not follow a policy of segregation is the Marin County Housing Authority.

75 For details about the local housing authorities in the Bay Area, cf. Chapter VI, Local Policy, p. 69.

76 See Chapter I, p. 15.

77 The approximate average yearly income of the tenants in Codornices Village is \$3,164.67. This average is based upon the average or minimum starting rates for construction laborers, longshoremen and workers in building services. A majority of the tenants in Codornices work in these trades.

Village, a single project, houses a proportionately larger number of Negro families than do the local housing authorities, each with a number of projects under their jurisdiction, in the same area.⁷⁸

It has been stated, earlier in the chapter,⁷⁹ that the quota system was to be kept in use in Codornices as long as apartments were full and there were white and Negro families on the waiting list. When it became apparent that there were many more Negro applicants on the waiting list than white applicants, and that there was a considerable amount of turnover among the white tenants in the project, the management realized that continued use of the quota system would result in empty apartments. Therefore, it was decided to abandon the quota system in July, 1950.

In a report to the Regional office of the Public Housing Administration, dated September 29, 1950, Mr. Kinhead makes the following comments:

"...up until April of this year, a fairly constant ratio between white and Negro tenants was maintained. Since that date, a decline in the proportion of white occupants is evident. This is traceable to two factors. First, the intention given to the project to abandon the enforcement of the fixed ratio which has been in effect previously. Second, there has been a considerable decline in the number of applications received from whites. This, when a unit is

78 Codornices Village has housed 50% or over of non-whites almost since its inception. The other housing authorities, with the exception of Oakland and Marin Co. have limited Negro occupants to less than 30% of the total occupants of their war housing projects. (Non-white occupants in Oakland war housing projects make up more than 40% of the total occupants).

79 cf. p. 115.

available, quite often the only applicant available is colored. Where previously no single building on the project had all-white tenants or all-Negro, there are now two or three buildings limited to one race."⁸⁰

It appears that there will continue to be a market among white families for housing in Codornices Village. Students at the University of California will comprise a primary market, as will a relatively small number of low-income families in the immediate area. However, with the removal of the quota system, applicants will be taken in the order of filing. With the large number of Negro applicants and the system of taking applicants on a first-come, first-served basis, there is not much chance for the few white applicants to obtain housing in the Village, or, if housing is obtained, to offset the growth of a large Negro population in the project. Therefore, it is conceivable that Codornices will gradually become an all-Negro project. The present occupancy figures of Codornices Village are approximately 80% Negro and 20% white.

80 PHA files.

CHAPTER VIII

CONCLUSION

The history of the application of racial relations policies in Codornices Village provides a picture of the achievement of a goal (a non-segregated project) and the unsuccessful maintenance of that goal in the face of outside factors. Some of these factors, such as the expansion of private housing facilities for white families, are outside the realm of public housing and cannot be controlled. Other factors, such as the racial occupancy patterns practiced in other public housing projects, are within the realm of public housing. Therefore, it would be well to discuss these patterns, in order to arrive at some conclusion as to their value in the operation of a public housing program.

The communities of the Bay Area, faced with the problem of incorporating an expanded Negro population into their community life, have had the opportunity to find solutions to a part of this problem in the operation of the public housing programs under their jurisdiction. The solution may be found in the racial occupancy patterns of the housing projects, and this study has attempted to present the current "solutions" used in six communities in the Bay Area.

The question as to whether these racial occupancy patterns are solutions to the problem may be answered by determining

whether these public housing projects adequately meet the demand for housing from the groups they are set up to serve.

Codornices Village and the six local housing authorities discussed in this study all serve the same area. Therefore, it would be expected that each would have approximately the same proportion of racial groups within their housing projects. However, it has been shown that Codornices Village houses a much greater percentage of Negro families than any of the five local housing authorities that practice segregation. This fact would appear to lead to the conclusion that the use of a segregation policy in public housing projects results in limiting the extent to which the projects can meet the changing needs of the groups they serve. The object of a public housing program, wherever it is instituted, is to meet the housing needs of the market it serves, to the greatest possible extent. Since the use of a segregation policy, in the Bay Area, does not accomplish this purpose, a non-segregation policy should be instituted in those housing programs where it is not in use.

It has been stated, earlier in the study, that local policy is based upon national policy, as reflected through Federal agencies. Therefore, there are various local racial occupancy policies which are used in the Bay Area. In view of that fact, it would appear that the only way to attain a consistent pattern of non-segregation in the Bay Area is through national, or Federal, policy.

An immediate objection to be raised to the preceding statement is the fact, mentioned by Catherine Bauer earlier in the study, that if non-segregation were to be "dictated by Federal

policy", there would be no enforcement of this policy in the South, or else there would be "no [low-rent housing or slum clearance] in the areas with the worst slums in the South, which are mainly occupied by Negroes." Non-segregation is unconstitutional in the southern states. It would be impossible to apply Federal policy in states where this policy is considered to be unconstitutional.

When considering the matter of the application of a non-segregation policy in public housing throughout the country, factors besides those mentioned by Miss Bauer should be taken into consideration. The situation that exists in the Bay Area exists in communities all over the country. Hundreds of people, outside of the South, who are in need of public housing and qualified for this housing are not able to participate in the program because of the racial occupancy patterns that now exist. Although Negroes in the South may be deprived of public housing in proportion to their need, because prevailing customs in that part of the United States would negate a non-segregation policy, hundreds of minority group members, outside the South, would be able to obtain public housing which they need and for which they are qualified, if this policy were to become a part of Federal policy. For these reasons, it would seem logical to recommend that a non-segregation policy be firmly established as a part of the Federal housing policy to be followed in the public housing program in this country. The feasibility of this recommendation is doubtful, however, in view of the following facts:

1. Congress enacts laws, to be carried out and interpreted by

agencies set up by these laws. Therefore, it is in the power of Congress to render these laws ineffective (through amendments), or to do away with the agencies set up to carry out the laws, or to "kill" further legislation on the subject.

2. The Federal agency is set up to interpret the law, in terms of the policy. The agency can only base the policies it formulates upon what is written in the law. As stated earlier, there is little likelihood that Congress would pass any housing legislation that contained non-segregation provisions. Therefore, there is little hope for a national non-segregation policy at this time.

The part that private housing plays in determining the racial occupancy of a temporary public housing project, such as Codornices Village, must not be overlooked. The large number of Negro applicants for housing at Codornices Village is made up, in part, of upper and middle income families. These families constitute a market for private housing. They are obliged to take advantage of the temporary public housing facilities, however, because there is very little private housing available to Negroes in the Bay Area. The end result of this paucity of private housing for Negro occupancy may be seen in the unsuccessful maintenance of the non-segregation program in Codornices Village. The program is failing because of the growing disproportionate number of tenants of one racial group. It would appear, therefore, that a non-segregation program cannot be successfully maintained in public housing unless more private housing facilities are made available to the Negro population.